

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
KAMANI GARNETT, infant, by his mother and natural
guardian COLINA GARNETT and COLINA GARNETT,
individually, MALIK ALI infant by his parents and natural
guardians ROSEANNA GRANT and KAMAL ALI
and ROSEANNA GRANT and KAMAL ALI,
individually,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY BOARD
AND/OR DEPARTMENT OF EDUCATION, LORENZO
CHAMBERS, in his individual and official capacities,
"JANE" STEIN (first name being Fictitious and presently
unknown), in her individual and official capacities, NEW
YORK CITY POLICE DEPARTMENT, NYC POLICE
OFFICERS "JOHN DOES" (names being fictitious and
presently unknown), in their individual and official
capacities,

Defendant(s)

-----X

SUMMONS

Index No.:

Date Purchased: _____

Plaintiff designate Kings
County as the place of trial.

The basis of venue is:
Plaintiffs' place of residence
and location of incident.

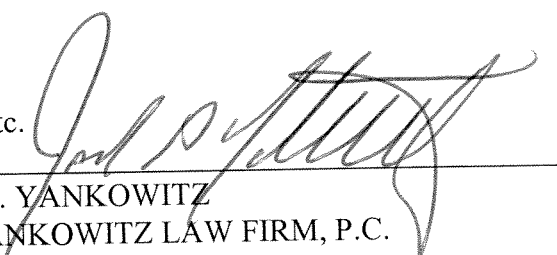
Plaintiffs reside at:
1097 E. 95th Street
Brooklyn, NY 11236
and
1130 E. 98th Street
Brooklyn, NY 11236

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Great Neck, New York
June 10, 2013

Yours, etc.



JACK A. YANKOWITZ
THE YANKOWITZ LAW FIRM, P.C.

Attorneys for Plaintiff(s)

KAMANI GARNETT, infant by his mother and
natural guardian, COLINA GARNETT, MALIK ALI,
infant by his parents and natural guardians
ROSEANNA GRANT AND KAMAL ALI

175 East Shore Road
Great Neck, New York 11023
(516) 622-6200
Our File No. 7526 -12

TO:

The City of New York
The Comptroller of the City of New York
Municipal Building
1 Centre Street
New York, New York 10007
and/or
NYC Law Department
100 Church Street
New York, New York

NEW YORK CITY POLICE DEPARTMENT
NYC Police Officers "JOHN DOES"
1 Police Plaza
New York, New York
and/or
69st Precinct
9720 Forest Avenue
Brooklyn, New York

NEW YORK CITY BOARD AND/OR DEPARTMENT OF EDUCATION
65 Court Street, Room 809
Brooklyn, New York 11201
and/or
NYC Law Department

100 Church Street
New York, New York

LORENZO CHAMBERS
“JANE” STEIN
65 Court Street, Room 809
Brooklyn, New York 11201
and/or
P.S. 279
1070 East 104th Street
Brooklyn, NY 11236
and/or
NYC Law Department
100 Church Street
New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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KAMANI GARNETT, infant, by his mother and natural
guardian COLINA GARNETT and COLINA GARNETT,
individually and MALIK ALI, infant by his parents and
natural guardians ROSEANNA GRANT and KAMAL ALI
and ROSEANNA GRANT and KAMAL ALI,
individually,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY BOARD
AND/OR DEPARTMENT OF EDUCATION, LORENZO
CHAMBERS, in his individual and official capacities,
“JANE” STEIN (first name being Fictitious and presently
unknown), in her individual and official capacities, NEW
YORK CITY POLICE DEPARTMENT, NYC POLICE
OFFICERS “JOHN DOES” (names being fictitious and
presently unknown), in their individual and official
capacities,

Defendant(s)

-----X

Plaintiffs, by their attorneys, **THE YANKOWITZ LAW FIRM, P.C.**, complaining of the
Defendants, respectfully allege upon information and belief:

PRELIMINARY STATEMENT

1. This is an action about the rights of students, and the infant plaintiffs, KAMANI GARNETT and MALIK ALI in particular, to be educated in a safe environment free from unnecessary and excessive abuse, force and violent frightening encounters with armed New York City precinct based Police Officers who are deployed and patrol New York City Public Schools, and P.S. 279, in particular. The infants KAMANI GARNETT and MALIK ALI, 10 years of age at the

COMPLAINT

Index No.:

Date Purchased:

time of the subject incident, bring this action against the defendants CITY OF NEW YORK, THE NEW YORK CITY BOARD AND/OR DEPARTMENT OF EDUCATION, THE NYC POLICE DEPARTMENT, School Principal, LORENZO CHAMBERS, Assistant Principal “ JANE” STEIN and NEW YORK CITY POLICE OFFICERS “ JOHN DOES”, who carelessly, recklessly and negligently deprived and violated the infant plaintiffs’ civil and constitutional rights and caused, permitted and allowed them to be falsely arrested and imprisoned, maliciously prosecuted, assaulted and battered, physically, verbally and emotionally abused, injured and damaged.

2. The Actions of the defendants were an unfortunate but inevitable result of the policies and practices of THE CITY OF NEW YORK, THE NEW YORK CITY BOARD AND/OR DEPARTMENT OF EDUCATION AND THE NEW YORK CITY POLICE DEPARTMENT governing the deployment of armed police officers into NYC Public Schools and their school yards.

3. In 1998 the defendant THE CITY OF NEW YORK adopted a memorandum of understanding (MOU) transferring school safety responsibilities from THE NEW YORK CITY BOARD AND/OR DEPARTMENT OF EDUCATION to the NEW YORK CITY POLICE DEPARTMENT.

4. Members of THE NEW YORK CITY BOARD AND/OR DEPARTMENT OF EDUCATION, engage in a policy and practice of unlawfully seizing, detaining and confining school children and causing, permitting and allowing their arrest and imprisonment for minor violations of school rules or conduct which does not constitute probable cause of criminal activity, in violation of the Fourth Amendment of the United States Constitution and New York State Law.

5. Members of the NYC Police Department, the New York Police Department School safety division and NYPD precinct-based officers assigned to and deployed to NYC public schools, engage in a policy and practice of unlawfully seizing and arresting NYC school children, in violation of the Fourth Amendment of the United States Constitution and New York State Law. This policy and practice manifests itself in several ways: arresting students for minor violations of school rules or for conduct that does not constitute probable cause of criminal activity, detaining those

students on school grounds and off school grounds at police precincts, handcuffing students and detaining them in seclusion rooms in school buildings, using excessive and abusive force against school children.

6. A class action lawsuit against the City of New York, et al has been pending and in litigation for several years, on behalf of middle and high school students enrolled in NYC Public Schools, (UNITED STATES DISTRICT COURT, EASTERN DISTRICT OF NEW YORK, DOCKET # 10CV0210 (RRM) (ALC), challenging the aforesaid unconstitutional policies and practices of NYCPD and the defendants aforesaid policy, custom and usage under and pursuant to MOU.

7. Research demonstrates that law enforcement agencies frequently fail to account for the ways in which policing students in public schools differs from policing adults on the street. A study commissioned by the U.S. Department of Education found, “ One [of] the most frequent and destructive mistakes many programs make is to fail to define [law enforcement’ s] roles and responsibilities in detail before—or even after—the officers take up their posts in schools. When programs fail to do this, problems are often rampant in the beginning of the program—and often persist for months and even years.”

8. Such problems are endemic in New York City, where the 1998 MOU transferring school safety responsibilities to the NYPD failed to adequately define the roles and responsibilities of members of the NYPD or the NYC BOARD AND/OR DEPARTMENT OF EDUCATION, teachers, deans and principals. This failure by the City to institute an adequate school safety governance structure is evident in the challenged policy and practice of unlawfully seizing and arresting school children absent probable cause and in the challenged policy and practice of using excessive force against school children. Indeed, it is the stated policy of the NYPD that NYPD personnel should remove “ unruly” children from NYC public schools, yet the term “ unruly” has not been defined and no other limits to this policy or protocols respecting this policy, have been

enunciated. This broad and undefined policy invites unconstitutional arrests of, and excessive force directed at, schoolchildren.

9. As a result of these unconstitutional policies and practices, NYC Public School students miss school and suffer psychological and physical injury. They also suffer ongoing harm. They face the humiliation and degradation of being paraded in handcuffs in front of their classmates and teachers and taken to seclusion rooms and to police precincts where they are handcuffed for hours. They face the humiliation and degradation of being hauled out of their schools in handcuffs—again in front of classmates and teachers—and being brought to police precincts for booking. Because the arrests made by NYPD personnel are often groundless, any resulting criminal cases are almost always dismissed and/or diverted to non-punitive processes. These subsequent dispositions do not mitigate the harm suffered by school children who are handcuffed, arrested, imprisoned and suspended from school.

10. The policies and practices challenged here constitute the official municipal policy of the Defendants CITY OF NEW YORK, the NEW YORK CITY BOARD AND/OR DEPARTMENT OF EDUCATION AND THE NEW YORK CITY POLICE DEPARTMENT. First, the seizures of students—by means of handcuffing, seclusion and/or formal arrest—for conduct or minor misbehavior that falls short of probable cause of criminal activity constitutes the official stated policy of the City-Defendants. Second, the unlawful seizures and arrests of, and use of excessive physical force against school children constitute municipal policy because they occur with such frequency as to amount to a custom and usage of the City-Defendants. Finally, City-Defendants' failure to appropriately train and supervise the members of the NYPD or employees of the NYC BOARD AND/OR DEPARTMENT OF EDUCATION in order to address a known pattern of unconstitutional arrests and seizures, and the use of excessive force, amounts to deliberate indifference, thus constituting official municipal policy.

11. Members of the NYPD and employees of the NYC BOARD AND/OR

DEPARTMENT OF EDUCATION engage in a pattern and practice of subjecting New York City public students to unlawful seizures and arrests by: (a) arresting students for minor violations of school rules or conduct that does not constitute probable cause of criminal activity, and removing and holding those students on school grounds and off school grounds, often at police precincts; and (b) handcuffing students and detaining them in seclusion rooms in school buildings, for minor violations of school rules or conduct that does not constitute probable cause of criminal activity. Students who are arrested are then removed from schools, typically in handcuffs, and held at police precincts, or are transported to hospitals for emergency psychiatric evaluations in the absence of any legitimate cause for such evaluations. In addition, upon information and belief, a significant number of school children under the age of sixteen have been arrested at school for allegedly having committed non-criminal conduct or violations even though such arrests are prohibited by state law.

12. The challenged conduct by members of the NYPD and employees of the NYC BOARD AND/OR DEPARTMENT OF EDUCATION constitutes official municipal policy. First, the policy and practice of unlawfully seizing and arresting students for conduct or minor school misbehavior that does not amount to probable cause of criminal activity is the official stated policy of the NYPD, which broadly authorizes law enforcement personnel to remove “unruly” children from schools. Second, both challenged policies and practices—the unlawful seizures and arrests of, as well as the use of excessive force against, schoolchildren—are so widespread and frequent as to constitute a custom and usage of members of the NYPD and NYC BOARD AND/OR DEPARTMENT OF EDUCATION. Third, City-Defendants were well aware of, yet deliberately indifferent to, the prevalence of the challenged policies, failing to make meaningful attempts to improve the training and supervision of members of the NYPD and NYC BOARD AND/OR DEPARTMENT OF EDUCATION employees. For each of these reasons, the aforesaid policies and practices are directly attributable to the Defendants, CITY OF NEW YORK, NYC BOARD AND/OR DEPARTMENT OF EDUCATION AND THE NYCPD.

13. The policy and practice of unlawfully seizing and arresting school children for conduct or minor misbehavior that does not establish probable cause of criminal activity constitutes the official policy of the City, as set forth by the NYC Police Commissioner Raymond W. Kelly and the predecessor of Assistant Chief Thomas Chan, Commanding Officer of the NYPD School Safety Division, both of whom have or had final decision-making authority in these matters.

14. On June 11, 2007, defendant Police Commissioner Kelly submitted a letter to New York City Councilmember Robert Jackson indicating that the duties of NYPD School Safety Officers include “removing unruly students” and “enforc[ing] the rules and regulations” of the “Student Disciplinary Code.”

15. Likewise, on October 10, 2007, James Secreto, then an Assistant Chief and the Commanding Officer of the NYPD School Safety Division (and Thomas Chan’s predecessor), submitted a written statement to the New York City Council, stating that School Safety Officers are responsible for “removing unruly” students from public schools.

16. In this context, the removal of an “unruly” student by members of the NYPD constitutes a seizure and/or arrest; students are not free to leave once seized and/or arrested, and often they are transported to a local police precinct even when they have done nothing more than arguably violate school rules in a non-criminal matter. In addition, although neither Defendant Kelly nor former Assistant Chief Secreto further defined the term “unruly”, as a matter of logic and plain language, the term encompasses conduct or minor misbehavior that does not amount to probable cause of criminal activity.

17. In these ways, the policy and practice of unlawfully seizing and arresting school children for conduct or minor school misbehavior, absent probable cause of criminal activity, constitutes official municipal policy, as articulated by officials with final decision-making authority in these matters. This widespread and frequent actions by members of the NYPD and NYC BOARD AND/OR DEPARTMENT OF EDUCATION occur as part of a larger pattern and practice of unlawfully seizing and arresting students absent probable cause, and of using excessive force against

school children that is so prevalent as to amount to a custom and usage of the Defendants, CITY OF NEW YORK, NYC BOARD AND/OR DEPARTMENT OF EDUCATION AND NYCPD.

18. City-Defendants have been aware of the pervasive nature of the pattern and practice by members of the NYPD and employees of the NYC BOARD AND/OR DEPARTMENT OF EDUCATION of unlawfully seizing and arresting schoolchildren, and the pattern and practice of subjecting them to excessive force. Yet, City-Defendants have been deliberately indifferent to these patterns and practices, and have not attempted to remedy them.

19. City-Defendants also have had actual knowledge of these patterns and practices for several years from numerous sources, including but not limited to,

(1) Class action suit filed by attorneys on behalf of the New York Civil Liberties Union Foundation, the American Civil Liberties Union Foundation and Dorsey & Whitney LLP, in the U.S. District Court, Eastern District, B.H. on behalf of her minor daughter D.B. et al v. City of New York, et al, Docket # 10CV0210 (RRM)(ALC) and the evidence and documentation exchanged therein prior to February 15, 2012.

(2) In March 2007, the New York Civil Liberties Union and the American Civil Liberties Union published a report titled *Criminalizing the Classroom: The Over-Policing of New York City Schools*, documenting instances of abuses by members of the NYPD School Safety Division. Upon information and belief, the NYCPD and all senior personnel within the NYPD School Safety Division received copies of the *Criminalizing the Classroom* report.

(3) City-Defendants obtained further knowledge of the challenged patterns and practices through the publication of other reports documenting abuses by members of the NYPD, *See e.g.* Drumm Major Institute for Public Policy, *A look at the Impact Schools* (June 2005); Kevin P. Brady, Sharon Balmer and Deinya Phenix, *School-Police Partnership Effectiveness in Urban Schools: An Analysis of New York City's Impact Schools Initiative* (Education and Urban Society, Aug. 2007); National Education and Social Rights Initiative and Teachers Unite,

Teachers Talk: School Culture, Safety and Human Rights (Oct. 2008); and Urban Youth Collaborative, *Bill of Rights* (2006).

(4) City-Defendants also obtained actual knowledge of the pattern and practice by members of the NYPD of unlawfully arresting schoolchildren, based on letters submitted by the American Civil Liberties Union and the New York Civil Liberties Union to Defendant Police Commissioner Kelly dated October 7, 2008 and November 4, 2008. These letters documented that a significant number of schoolchildren under the age of sixteen have been arrested at school for non-criminal violations even though such arrests are prohibited by state law.

(5) City-Defendants also obtained actual knowledge of the patterns and practices challenged here from media reports. For example, the New York Daily News reported on June 19, 2008 that an NYPD School Safety Officer handcuffed a five-year old boy and transported him to a psychiatric hospital, without parental consent, after the boy threw what was described as a “temper tantrum.” Likewise, on March 10, 2008, the New York Daily News reported that an NYCPD School safety Officer handcuffed two four-year old boys for refusing to take a nap.

(6) City-Defendants also obtained actual knowledge of the patterns and practices challenged here from complaints filed with the IAB regarding conduct by members of the NYPD.

(7) City-Defendants also obtained actual knowledge of the patterns and practices challenged here from notices of claims and complaints asserted against them prior to February 15, 2012, regarding the conduct of members of the NYPD and the NYC BOARD AND/OR DEPARTMENT OF EDUCATION for incidents involving the unlawful seizure, arrest, imprisonment, handcuffing and use of excessive force, verbal, physical and emotional abuse of children in the NYC Public School system.

(8) City-Defendants also obtained actual knowledge of the patterns and practices challenged here from the New York City Council hearing held on October 10, 2007 regarding the NYPD School Safety Division, Former Assistant Chief James Secreto was

present at this hearing and testified on behalf of himself and Defendant Police Commissioner Kelly. At that hearing, a number of children offered testimony regarding abuses suffered at the hands of NYCPD School Safety Officers as described above. At the same hearing, Gregory Floyd, the president of the union representing all School Safety Offices, testified that he agreed with the statement that “ we need to have more mediation training, more conflict resolution, knowing [sic] how to diffuse [sic] situations among not only staff and teachers and administrators, but also for students...”

(9) City-Defendants also obtained actual knowledge of the patterns and practices challenged here from the New York City Council hearing held on November 10, 2009 regarding the NYPD School Safety Division. Former Assistant Chief James Secreto was present at this hearing and testified on behalf of himself and Defendant Police Commissioner Kelly. During that hearing, testimony was offered regarding the unlawful seizures, arrests, and beatings of a number of children.

20. Notwithstanding this detailed knowledge of the patterns and practices challenged here, City-defendants have failed to undertake any meaningful attempt to curtail these patterns and practices, in blatant disregard of the rights of New York City public schoolchildren.

FACTS

21. Upon information and belief, on March 21, 2012, some washable paint was discovered on a schoolyard slide and the schoolyard ground of P.S. 279 by defendants LORENZO CHAMBERS and/or “ JANE” STEIN and/or their agents, servants and/or employees of the defendants CITY OF NEW YORK and NEW YORK CITY BOARD AND/OR DEPARTMENT OF EDUCATION.

22. On March 21, 2012, at approximately 11:30 AM TO 12:00 noon, the infant plaintiff KAMANI GARNETT, a 4th grade student was in attendance at P.S. 279 located at 1070 E. 104th Street, Brooklyn, New York.

23. At said time, date and place the defendant, LORENZO CHAMBERS caused 10 year old infant plaintiff KAMANI GARNETT to be removed from his scheduled school activity, brought to his office without notifying and without permission from the child's parent and guardian, plaintiff COLINA GARNETT and defendant LORENZO CHAMBERS seized, confined, imprisoned and interrogated this 10 year old child.

24. The defendant LORENZO CHAMBERS, (Principal of P.S. 279), confined the 10 year old infant plaintiff KAMANI GARNETT, intimidated and verbally abused and threatened the 10 year old KAMANI GARNETT with police arrest and imprisonment if he did not admit he was part of an incident which occurred on March 21, 2012 where some washable paint was found on a schoolyard slide and schoolyard ground.

25. LORENZO CHAMBERS continued to confined the 10 year old infant plaintiff KAMANI GARNETT and then telephoned his mother, plaintiff COLINA GARNETT falsely stating that he had "video" that showed her son participating in placing paint on the schoolyard with other children and demanded that she come to the school immediately to discuss the matter.

26. The defendant LORENZO CHAMBERS further stated to Ms. Garnett that he intended to have the children clean up the paint or they will be suspended.

27. Thereafter, as plaintiff COLINA GARNETT was leaving her home to go to P.S. 279, she received a telephone call from P.S. 279 wherein a female employee of the defendant CITY OF NEW YORK and/or NEW YORK CITY BOARD AND/OR DEPARTMENT OF EDUCATION advised plaintiff COLINA GARNETT to go to the 69th Pct. to pick up her 10 year old child KAMANI GARNETT.

28. Plaintiff, COLINA GARNETT demanded to speak to the principal, defendant LORENZO CHAMBERS who then stated to her that he decided to "scare her 10 year old child Kamani", and "make an example of him", to scare and intimidate the other children in his school.

29. Upon information and belief, shortly thereafter, defendant LORENZO CHAMBERS

caused 2 uniformed police officers from the 69th Pct. to arrest the 10 year old infant plaintiff, KAMANI GARNETT and remove the child from P.S. 279; said Police Officers arrested the 10 year old KAMANI GARNETT, removed him from P.S. 279 and placed him in a NYCPD vehicle, and in view of the child' s friends, schoolmates and teachers, took him to the 69th Pct.

30. On March 22, 2012 at approximately 12:30 to 1:00 PM, the infant plaintiff, 10 year old MALIK ALI was attending a hearing at the District 18 office of the NEW YORK CITY BOARD AND/OR DEPARTMENT OF EDUCATION with his father, plaintiff KAMIL ALI.

31. At said time, date and place the defendants LORENZO CHAMBERS and/or " JANE" STEIN contacted the defendant NEW YORK CITY POLICE DEPARTMENT, caused the 10 year old infant plaintiff MALIK ALI to be removed from his scheduled school activity and removed from the custody of his father, plaintiff KAMIL ALI.

32. Prior to said time, date and place, the defendants LORENZO CHAMBERS AND/OR " JANE" STEIN contacted the defendants CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT, alleged that the 10 year old infant plaintiff, MALIK ALI was involved in the placement of some washable paint on a schoolyard slide or the schoolyard ground at P.S. 279, and said defendants CHAMBERS and STEIN caused, permitted and allowed 10 year old MALIK ALI to be removed from the custody of his father KAMIL ALI, arrested and taken to the 69th Pct.

33. At said time, date and place the defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, defendants NYC Police Officers " JOHN DOES", arrested the 10 year old infant plaintiff, MALIK ALI, removed him from the custody of his father, KAMIL ALI, placed him into a NYC POLICE DEPARTMENT vehicle and took him to the 69th Pct.

34. At the 69th Pct. 10 year old infant plaintiff, KAMANI GARNETT was falsely arrested and imprisoned and treated like a hardened criminal by the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NYC Police Officers " JOHN DOES" and/or their agents, servants and/or employees; they forced the 10 year old KAMANI GARNETT to empty his pockets; this child was patted down; he was placed into a room and handcuffed to a wall

for approximately 4 hours; he was denied food and drink; he was denied access to legal counsel during the entire time of his incarceration and imprisonment; he was denied access and permission to see and speak with his mother, plaintiff COLINA GARNETT during the entire time of the 4 hour incarceration and imprisonment even though she was present in the precinct and demanding to see her 10 year old child. The aforesaid officers of the 69th Pct. used excessive and unnecessary force, falsely and unnecessarily imprisoned and handcuffed this 10 year old child for approximately 4 hours, during which time they verbally threatened and intimidated this child, deprived him of his constitutional and civil rights, denied, refused and deprived access to his mother CAROLINA GARNETT.

35. At the 69th Pct. 10 year old infant plaintiff, MALIK ALI was falsely arrested and imprisoned and treated like a hardened criminal by the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NYC Police Officers “JOHN DOES” and/or their agents, servants and/or employees; they forced the 10 year old MALIK ALI to empty his pockets; this child was patted down; he was placed into a room and handcuffed to a wall for approximately 4 hours; he was denied food and drink; he was denied access to legal counsel during the entire time of his incarceration and imprisonment; he was denied access and permission to see and speak with his father, plaintiff KAMIL ALI during the entire time of the 4 hour incarceration and imprisonment even though he was present in the precinct and demanding to see his 10 year old child. The aforesaid officers of the 69th Pct. used excessive and unnecessary force, falsely and unnecessarily imprisoned and handcuffed this 10 year old child for approximately 4 hours, during which time they verbally threatened and intimidated this child, deprived him of his constitutional and civil rights, denied, refused and deprived access to his father KAMIL ALI.

36. Upon information and belief, the aforementioned paint on the slide and schoolyard ground at P.S. 279 was limited and was washed away with water, with no damage to the premises.

37. That the defendants, their agents, servants and/or employees at all times herein mentioned were advised and aware that the 10 year old infant plaintiff, KAMANI GARNETT and MALIK ALI committed no crime and there was no probable cause for their arrest; the defendants, their agents, servants and/or employees used excessive, abusive and unnecessary force, falsely and unnecessarily arrested, handcuffed and imprisoned the 10 year old infant plaintiffs, KAMANI GARNETT and MALIK ALI for 4 and 5 hours. THERE WAS NO WARRANT FOR THE ARREST OF THE 10 YEAR OLD INFANT PLAINTIFFS, KAMANI GARNETT and MALIK ALI.

38. At all times herein mentioned, the 10 year old infant plaintiffs KAMANI GARNETT and MALIK ALI presented no danger to themselves or anyone else, they had no weapons and provided no resistance to their aforesaid arrests, handcuffing and imprisonment.

39. At no time herein mentioned, did the defendants advise the 10 year old infant plaintiffs of their legal rights, rights to legal counsel and did not read and explain to the 10 year old infant plaintiffs KAMANI GARNETT and MALIK ALI their Miranda and Constitutional rights.

40. The defendants issued an appearance ticket to the infant plaintiffs, requiring court appearances by the 10 year old infants KAMANI GARNETT and MALIK ALI.

41. The defendants and the City of New York, Law Department office of the Corporation Counsel, refused to file a petition and refused to file and prosecute any charges against the 10 year old infant plaintiffs, KAMANI GARNETT and MALIK ALI.

42. That on March 6, 2013 a NYS Foil request was made to the defendants for production of the following records relating to the aforesaid arrest and handcuffing of the infant plaintiffs, KAMANI GARNETT and MALIK ALI:

The appearance ticket and any other documents, writings, memos, logs, notes, etc. setting forth and indicating the name(s) and badge numbers of the New York City Police Officers, upon information and belief, from the 69th precinct who arrested and/or were involved in the arrest and handcuffing of the infants, KAMANI GARNETT and MALIK ALI on March 22, 2012.

43. The defendants failed and refused to comply and provide the documentation and information requested by the plaintiff's said NYS Foil Request and refused and failed to disclose the identities of the "JOHN DOE" named defendants herein. (See defendant's letter dated March 18, 2013 annexed hereto and incorporated herein by reference).

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF KAMANI GARNETT**

44. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

45. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is a Department, Agency and/or Division of the defendant CITY OF NEW YORK, a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

46. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY BOARD AND/OR DEPARTMENT OF EDUCATION, was and still is a Department, Agency and/or Division of the defendant CITY OF NEW YORK, a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

47. That at all times herein mentioned, the plaintiffs KAMANI GARNETT and COLINA GARNETT were and still are residents of the County of Kings, City and State of New York.

48. Upon information and belief, that at all times herein mentioned, the defendant, LORENZO CHAMBERS was and still is a resident of the State of New York.

49. Upon information and belief, that at all times herein mentioned, the defendant, "JANE" STEIN was and still is a resident of the State of New York.

50. Upon information and belief, that at all times herein mentioned, the defendant, "JOHN DOES" were and still are residents of the State of New York.

51. Upon information and belief, that at all times herein mentioned, the defendant LORENZO CHAMBERS was employed by the defendants CITY OF NEW YORK and/or NYC BOARD AND/OR DEPARTMENT OF EDUCATION and his conduct and actions set forth in this Complaint were in the course of his employment and in her official and individual capacity.

52. Upon information and belief, that at all times herein mentioned, the defendant “ JANE” STEIN was employed by the defendants CITY OF NEW YORK and/or NYC BOARD AND/OR DEPARTMENT OF EDUCATION and her conduct and actions set forth in this Complaint were in the course of her employment and in her official and individual capacity.

53. Upon information and belief, that at all times herein mentioned, the defendants “ JOHN DOES” were employed by the defendants CITY OF NEW YORK and/or NYCPD and their conduct and actions set forth in this Complaint were in the course of their employment and in their official and individual capacity.

54. That the plaintiffs have complied with all of the conditions precedent to the bringing of this action against the defendants and have complied with the provisions of the statute in such cases made provided; in particular plaintiffs, KAMANI GARNETT and COLINA GARNETT have presented and served a Notice of Claim hereinafter mentioned (a copy of which is annexed hereto and incorporated herein by reference) upon the defendants on February 11, 2013, and more that thirty 30 days have elapsed since the presentation of said claim and the claim remains unadjusted and the defendants have failed and/or refused to make any adjustments of same.

55. That the defendants have adjourned the 50H hearings and specifically, by e-mail dated May 30, 2013 (copy annexed) informed the plaintiffs that they will not schedule a 50H hearing for any of the plaintiffs until the pending Motion described below has been decided.

56. That an Order to Show Cause issued by Hon. Gloria M. Dabiri, Supreme Court, Kings County, Index # 5919-13, was duly served on defendants and is returnable on June 21, 2013 in IAS Part 7, Room 461, for an Order under General Municipal Law Section 50 (3)(5) granting the plaintiffs permission to file a late Notice of Claim and deeming the aforesaid Notice of Claims served

upon the defendants (copies annexed hereto and incorporated herein by reference) deemed timely filed and served nunc pro tunc.

57. That this action is being commenced within one year and ninety days of the occurrence complained herein.

58. This action falls within one or more of the exceptions set forth in CPLR § 1602.

59. The defendants, CITY OF NEW YORK, THE NYC BOARD AND/OR DEPARTMENT OF EDUCATION, LORENZO CHAMBERS, "JANE" STEIN and their agents, servants and/or employees, departments, agencies and those acting under their directions behest and control, were careless, reckless and negligent in their failure to properly investigate and/or evaluate the results of any investigation; in being careless, reckless and negligent in hiring, supervising, managing, instructing and controlling the Principal of P.S. 279, LORENZO CHAMBERS, the Assistant Principal at P.S. 279 "JANE" STEIN and those persons, agents, servants and/or employees hired to operate, manage, control, supervise, teach at and/or run said School; in failing to hire efficient and/or sufficient personnel in connection with the operation, management, control, teaching at and/or supervision of said School; in failing to train their employees so as to enable them to control students and/or persons in classrooms and school yard; in failing to investigate and/or properly investigate the situation; were careless, reckless and negligent in their performance of their educational, supervisory, child safety and protection, guidance duties, functions and obligation; in failing to adequately train their employees so as to enable them to control students and/or persons in classrooms and in the school yard; in failing to properly and/or adequately supervise the teaching curriculum and/or activities provided by and/or at said School; in failing to promulgate proper and/or

adequate rules and regulations governing the proper teaching curriculum and/or supervision, guidance and discipline to be provided and rendered by those agents, servants and/or employees hired to operate, manage, control, supervise, teach at and/or run said School; in failing to promulgate proper and/or adequate rules and/or regulations governing the proper care, guidance, discipline, safety and/or supervision to be provided and rendered to those utilizing said Public School; in failing to properly and/or adequately monitor the care, guidance, discipline and/or supervision provided at said School; in failing to properly and/or adequately provide guidance for the safety of and/or supervise the infant plaintiff herein; in failing to properly and/or adequately monitor and/or supervise the activities in which the infant plaintiff was involved in on the day of the incident; in failing to control students and in failing to prevent and/or stop inappropriate activity; in failing to adequately and properly supervise schoolyard activities; in failing to adequately and properly monitor, supervise and control the conduct and actions of LORENZO CHAMBERS, “ JANE” STEIN; in failing to promulgate, enforce and provide proper and adequate rules and regulations regarding discipline, conduct, childish behavior and misbehavior of Public School children and students, which are fair, constitutional and in accordance with their Civil Rights and which prevent any injury and damage to the health and welfare of the children under their care and prevent unnecessary physical, emotional and psychological abuse, injury and damage; in causing, permitting and allowing the seizure, confinement, false arrest, handcuffing and imprisonment of the infant plaintiff KAMANI GARNETT on school grounds, to and at the 69th Pct.; in carelessly, recklessly and negligently failing to prevent the aforesaid incident; the 10 year old child KAMANI GARNETT was not properly protected from the aforesaid conduct, actions, intimidation and abuse by defendants LORENZO CHAMBERS and “ JANE” STEIN.

60. The defendants CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, NYC Police Officers JOHN DOES”, their agents, servants and/or employees were careless, reckless and negligent in failing to properly train, instruct, supervise, monitor and control its officers, agents, servants and employees; were careless, reckless and negligent in the performance of their law enforcement functions and duties; in that they failed to properly and adequately investigate the situation, question witnesses and respect and pay attention to the 10 year old infant plaintiff; in falsely detaining, arresting and imprisoning the said 10 year old infant plaintiff in a careless, reckless and negligent manner; in negligently, carelessly and recklessly failing to prevent the aforesaid incident; in causing, permitting and allowing the false arrest and imprisonment, excessive force, abuse and handcuffing of the 10 year old child, KAMANI GARNETT, for approximately 4 hours, deprivation of his civil rights and denial of access to his parents and guardians; in that they failed to employ adequate, competent personnel, training, supervision and inspection; in that they maintained and controlled their police officers and investigators, with a reckless disregard for the safety and welfare of said 10 year old infant claimant KAMANI GARNETT; in that they failed to employ sufficient and adequate personnel and employees. That the CITY of NEW YORK, the NYCPD and the NYCPD 69th PCT., their agents, servants and employees on and before March 22, 2013 employed, engaged in, accepted, permitted and allowed a policy and/or custom and decision promulgated by the NYCPD, THE NYCPD 69th Pct., and the Police officers of the 69th Pct., of excessive and abusive force, lack of discretion and improper, careless, reckless and negligent investigation practices and procedures, racial and socio-economic bias and physical force and a disregard regarding the health, welfare and safety of children, specifically the 10 year old infant KAMANI GARNETT herein. The aforesaid actions and conduct by THE NEW

YORK CITY POLICE DEPARTMENT 69th Pct. and the unidentified police officers of NYCPD 69th Pct., their false arrest and imprisonment of 10 year old KAMANI GARNETT, the isolating, imprisoning, handcuffing, denial and deprivation of his civil rights, their denial and refusing access to this 10 year old child to his parents for over 4 hours while keeping him handcuffed to a wall, occurred pursuant to the practice of the NYCPD AND THE 69th Pct. of abuse, physical force and deprivation of Civil Rights that was so permanent and well settled as to constitute a custom and usage with the force of law. The CITY OF NEW YORK, NYCPD and NYCPD 69th PCT., failed to adequately and properly train the aforesaid unidentified police officers of the 69th Pct., with a deliberate indifference to the Civil Rights of the infant 10 year old KAMANI GARNETT and his parents, in violation of 42USC § 1983. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, the 69th Pct., their agents, servants and/or employees deprived the said claimants, the 10 year old child, KAMANI GARNETT and his parent, COLINA GARNETT, of due process and violated their Civil Rights under the constitution of the State of New York and the United States of America, as well as all applicable Civil Rights statutes, laws, ordinances, rules and regulations of the City and State of New York and the United States of America/Federal Government. Defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, NYC Police Officers “JOHN DOES”, their agents, servants and/or employees maliciously assaulted and handcuffed the 10 year old plaintiff, verbally abused and humiliated and embarrassed the 10 year old plaintiff and defamed his character. Defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees and their unidentified NYCPD officers of the 69th Pct. wrongfully, unlawfully, falsely and maliciously held, confined, restrained and imprisoned the said 10 year old plaintiff, KAMANI GARNETT,

handcuffed him for extended hours of time, falsely arrested him and deprived him of his liberty, violated his civil rights, isolated him and deprived him access to his parent and guardian, denied him access to legal counsel and verbally physically and emotionally abused, defamed, humiliated, intimidated and embarrassed this 10 year old child; all of which caused and inflicted serious injury and damage to the 10 year old plaintiff KAMANI GARNETT, herein set forth.

61. That as a result of the aforesaid incident the infant plaintiff, KAMANI GARNETT was caused to sustain serious and severe personal injuries.

62. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff KAMANI GARNETT sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable deprivation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and plaintiffs were caused to incur and continues to incur expenses for medical attention and treatment.

63. That the said occurrence and the injuries and damages to the infant plaintiff, KAMANI GARNETT, resulting therefrom were caused solely and wholly by reason of the carelessness, recklessness and negligence of the defendants, their agents, servants and/or employees.

64. That by reason of the foregoing, the infant plaintiff, KAMANI GARNETT, has been

damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE
INFANT PLAINTIFF, KAMANI GARNETT**

65. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs 1 - 64 with the same force and effect as though the same were more fully set forth at length hereat.

66. The defendants are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of unreasonably seizing and unlawfully arresting New York City public school students, and infant plaintiff KAMANI GARNETT in particular, absent probable cause of criminal activity in violation of the Fourth and Fourteenth Amendments to the United States Constitution and without a warrant.

67. Defendants, LORENZO CHAMBERS, “JANE” STEIN and NYC Police Officers “JOHN DOES” are liable pursuant to 42 U.S.C. § 1983 for unreasonably confining, detaining, seizing and unlawfully arresting and imprisoning the infant plaintiff, KAMANI GARNETT, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

68. The defendants, their agents, servants and/or employees deprived the infant plaintiff, KAMANI GARNETT of due process and violated his Civil Rights under the Constitution and Laws of the State of New York and the United States of America, as well as all applicable Civil Rights Statutes, Laws, Ordinances, rules and regulations of the City and State of New York and the United States of American Federal Government.

69. This action falls within one or more of the exceptions set forth in CPLR § 1602.

70. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff KAMANI GARNETT, sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable deprivation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

71. That by reason of the foregoing, the infant plaintiff, KAMANI GARNETT, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF KAMANI GARNETT**

72. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs 1-71 with the same force and effect as though the same were more fully set forth at length hereat.

73. The defendants, their agents, servants and/or employees wrongfully, unlawfully, maliciously assaulted, handcuffed, humiliated, embarrassed, seized, confined and imprisoned the infant plaintiff at his school, in a police vehicle and at the NYCPD 69th Pct. for 4 hours, in

view of his friends, neighbors, teachers, relatives and others, causing him severe personal injuries.

74. The defendants CITY OF NEW YORK, NYC BOARD AND/OR DEPARTMENT OF EDUCATION AND THE NYCPD are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of using excessive force against New York City public school children and students and the infant plaintiff, KAMANI GARNETT in particular, violation of the Fourth and Fourteenth Amendments to the United States Constitution.

75. Defendants NYC Police Officers "JOHN DOES" are liable pursuant to 42 U.S.C. § 1983 for using excessive force against the infant plaintiff, KAMANI GARNETT in violation of the Fourth and Fourteenth Amendment to the United States Constitution.

76. Defendants LORENZO CHAMBERS and "JANE" STEIN are liable pursuant to 42 U.S.C. § 1983 for causing, permitting and allowing the use of excessive force against the infant plaintiff, KAMANI GARNETT in violation of the Fourth and Fourteenth Amendment to the United States Constitution.

77. That the defendants, their agents, servants and/or employees acted under color of State Law to deprive the infant plaintiff KAMANI GARNETT of his right to be free of excessive force as guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution as enforced by 42 U.S.C. § 1983.

78. This action falls within one or more of the exceptions set forth in CPLR § 1602.

79. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness

and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff KAMANI GARNETT sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

80. That by reason of the foregoing, the infant plaintiff, KAMANI GARNETT, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF KAMANI GARNETT**

81. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs 1-80 with the same force and effect as though the same were more fully set forth at length hereat.

82. That the defendants are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of committing abuses against New York City public school students and the infant plaintiff, KAMANI GARNETT, depriving him of substantive due

process that shocks the conscience in violation of the Fourteenth Amendment to the United States Constitution.

83. Defendants LORENZO CHAMBERS and “JANE” STEIN AND NYC Police Officers “JOHN DOES” are liable pursuant to 42 U.S.C. § 1983 for abuses against the infant plaintiff, KAMANI GARNETT, depriving him of substantive due process that shocks the conscience in violation of the Fourteenth Amendment to the United States Constitution.

84. This action falls within one or more of the exceptions set forth in CPLR § 1602.

85. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff KAMANI GARNETT sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable deprivation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

86. That by reason of the foregoing, the infant plaintiff, KAMANI GARNETT, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF KAMANI GARNETT**

87. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-86 with the same force and effect as though the same were more fully set forth at length hereat.

88. By their actions, as set forth in this complaint and exhibits annexed, the defendants, their agents, servants and/or employees, in their official and individual capacities, acted under color of State Law to deprive the infant plaintiff, KAMANI GARNETT of his right to be free from false arrest and false imprisonment as guaranteed by the Fourth and Fourteenth Amendments of the Federal Constitution, as enforced by to 42 U.S.C. § 1983.

89. This action falls within one or more of the exceptions set forth in CPLR § 1602.

90. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff KAMANI GARNETT sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United

States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

91. That by reason of the foregoing, the infant plaintiff, KAMANI GARNETT, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF KAMANI GARNETT**

92. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-91 with the same force and effect as though the same were more fully set forth at length hereat.

93. The defendants CITY OF NEW YORK, NYC BOARD AND/OR DEPARTMENT OF EDUCATION AND NYCPD are liable for the unreasonable seizures and unlawful arrests of New York City public school children and students and plaintiff KAMANI GARNETT in particular, in violation of Article 1 § 12 of the New York Constitution.

94. Defendants, NYC Police Officers "JOHN DOES" are liable pursuant to Article 1 § 12 of the New York Constitution for unreasonable seizure and unlawful arrest of the infant plaintiff, KAMANI GARNETT.

95. Defendants, LORENZO CHAMBERS and "JANE" STEIN are liable pursuant to Article 1 § 12 of the New York Constitution for causing, permitting and allowing the unreasonable seizure and unlawful arrest of the infant plaintiff, KAMANI GARNETT.

96. This action falls within one or more of the exceptions set forth in CPLR § 1602.

97. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff KAMANI GARNETT sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

98. That by reason of the foregoing, the infant plaintiff, KAMANI GARNETT, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF KAMANI GARNETT**

99. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-98 with the same force and effect as though the same were more fully set forth at length hereat.

100. The Defendants, CITY OF NEW YORK, NYC BOARD AND/OR DEPARTMENT OF EDUCATION and NYCPD are liable for the false arrest of New York City public school children and students and the infant plaintiff, KAMANI GARNETT in

particular, in violation of New York Law.

101. Defendants, NYC Police Officers “JOHN DOES” are liable for the false arrest of the infant plaintiff, KAMANI GARNETT in violation of New York State law.

102. Defendants, LORENZO CHAMBERS AND “JANE” STEIN are liable for causing, permitting and allowing the false arrest of the infant plaintiff, KAMANI GARNETT in violation of New York State law.

103. This action falls within one or more of the exceptions set forth in CPLR § 1602.

104. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff KAMANI GARNETT sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable deprivation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

105. That by reason of the foregoing, the infant plaintiff, KAMANI GARNETT, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A EIGHTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF KAMANI GARNETT**

106. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-105 with the same force and effect as though the same were more fully set forth at length hereat.

107. The Defendants, CITY OF NEW YORK, NYC BOARD AND/OR DEPARTMENT OF EDUCATION and NYCPD are liable for the assault and battery of New York City public school children and students and the infant plaintiff, KAMANI GARNETT in particular, in violation of New York Law.

108. Defendants, NYC Police Officers “JOHN DOES” are liable for the assault and battery of the infant plaintiff, KAMANI GARNETT in violation of New York State law.

109. Defendants, LORENZO CHAMBERS and “JANE” STEIN are liable for causing, permitting and allowing the assault and battery of the infant plaintiff, KAMANI GARNETT in violation of New York State law.

110. This action falls within one or more of the exceptions set forth in CPLR § 1602.

111. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff KAMANI GARNETT sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the

constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

112. That by reason of the foregoing, the infant plaintiff, KAMANI GARNETT, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A NINETH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF KAMANI GARNETT**

113. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-112 with the same force and effect as though the same were more fully set forth at length hereat.

114. That all accusations and charges against the infant plaintiff, KAMANI GARNETT were false which was at all times known to the defendants, their agents, servants and/or employees.

115. That the defendants, their agents, servants and/or employees falsely arrested, imprisoned and maliciously prosecuted the infant plaintiff, KAMANI GARNETT and as a result of defendants abuse of process, the infant plaintiff was caused and subjected to great indignation and humiliation, embarrassment, pain and distress of mind and body and suffered injury and damage and defamation of his good name and reputation in the community, among his friends, neighbors, teaches and others.

116. This action falls within one or more of the exceptions set forth in CPLR § 1602.

117. That as a result of the defendants aforesaid conduct, actions, negligence, Carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff KAMANI GARNETT sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

118. That by reason of the foregoing, the infant plaintiff, KAMANI GARNETT, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF KAMANI GARNETT**

119. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-118 with the same force and effect as though the same were more fully set forth at length hereat.

120. As a result of the defendants and their agents, servants and/or employees' intentional, concerted, conspired, wanton, malicious, egregious and shocking actions and

conduct and their gross negligence and recklessness as set forth in this complaint, the infant plaintiff, KAMANI GARNETT claims punitive damages against the defendants.

121. This action falls within one or more of the exceptions set forth in CPLR § 1602.

122. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff KAMANI GARNETT sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

123. That by reason of the foregoing, the infant plaintiff, KAMANI GARNETT, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A ELEVENTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF COLINA GARNETT**

124. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-123 with the same force and effect as though the same were more fully set forth at length hereat.

125. At all times herein mentioned, the plaintiff COLINA GARNETT was and still is the mother and natural guardian of the infant plaintiff, KAMANI GARNETT and said plaintiff was entitled to the services, society and companionship of the infant plaintiff, KAMANI GARNETT.

126. That by reason of the forgoing, plaintiff COLINA GARNETT, has been deprived of the services, society and companionship of infant plaintiff, KAMANI GARNETT and caused to incur and continues to incur expenses and costs for his medical care and treatment for injuries and damages caused by the defendants' aforesaid conduct, actions, carelessness, recklessness and negligence.

127. The plaintiff COLINA GARNETT. sustained and continue to suffer pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress unconscionable depravation and denial of due process and their Civil Rights guaranteed under the Constitution of the United States of America and the State of New York, as well as the Civil rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of American/Federal Government.

128. That by reason of the forgoing, plaintiff COLINA GARNETT,. has been damaged in a sum which exceeds the jurisdictional limits of all lower costs which would otherwise have jurisdiction and these plaintiffs further claim punitive damages against the defendants as a result of their intentional, concerted, conspired, wanton, malicious, egregious and shocking actions and conduct and their gross negligence and recklessness as set forth in this Complaint.

129. This action falls within one or more of the exceptions set forth in CPLR § 1602.

130. That by reason of the foregoing, the plaintiff COLINA GARNETT, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A TWELVE CAUSE OF ACTION OF BEHALF OF THE INFANT
PLAINTIFF MALIK ALI

131. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-130 with the same force and effect as though the same were more fully set forth at length hereat.

132. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY was and still is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

133. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY BOARD AND/OR DEPARTMENT OF EDUCATION, was and still is a Department, Agency and/or Division of the defendant CITY OF NEW YORK, a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

134. That at all times herein mentioned, the plaintiffs MALIK ALI, ROSEANA GRANT AND KAMAL ALI were and still are residents of the County of Kings, City and State of New York.

135. Upon information and belief, that at all times herein mentioned, the defendant, LORENZO CHAMBERS was and still is a resident of the State of New York.

136. Upon information and belief, that at all times herein mentioned, the defendant, “JANE” STEIN was and still is a resident of the State of New York.

137. Upon information and belief, that at all times herein mentioned, the defendant,

“ JOHN DOES” were and still are residents of the State of New York.

138. Upon information and belief, that at all times herein mentioned, the defendant LORENZO CHAMBERS was employed by the defendants CITY OF NEW YORK and/or NYC BOARD AND/OR DEPARTMENT OF EDUCATION and his conduct and actions set forth in this Complaint were in the course of his employment and in her official and individual capacity.

139. Upon information and belief, that at all times herein mentioned, the defendant “ JANE” STEIN was employed by the defendants CITY OF NEW YORK and/or NYC BOARD AND/OR DEPARTMENT OF EDUCATION and her conduct and actions set forth in this Complaint were in the course of her employment and in her official and individual capacity.

140. Upon information and belief, that at all times herein mentioned, the defendants “ JOHN DOES” were employed by the defendants CITY OF NEW YORK and/or NYCPD and their conduct and actions set forth in this Complaint were in the course of their employment and in their official and individual capacity.

141. That the plaintiffs have complied with all of the conditions precedent to the bringing of this action against the defendants and have complied with the provisions of the statute in such cases made provided; in particular plaintiffs, KAMANI GARNETT, ROSEANNA GRANT and KAMIL ALI have presented and served a Notice of Claim hereinafter mentioned (a copy of which is annexed hereto and incorporated herein by reference) upon the defendants on February 11, 2013, and more that thirty 30 days have elapsed since the presentation of said claim and the claim remains unadjusted and the defendants have failed and/or refused to make any adjustments of same.

142. That the defendants have adjourned the 50H hearings and specifically, by e-mail Dated May 30, 2013 (copy annexed) informed the plaintiffs that they will not schedule a 50H hearing for any of the plaintiffs until the pending Motion described below has been decided.

143. That an Order to Show Cause issued by Hon. Gloria M. Dabiri, Supreme Court, Kings County, Index # 5919-13, was duly served on defendants and is returnable on June 21, 2013 in IAS Part 7, Room 461, for an Order under General Municipal Law Section 50 (3)(5) granting the

plaintiffs permission to file a late Notice of Claim and deeming the aforesaid Notice of Claims served upon the defendants (copies annexed hereto and incorporated herein by reference) deemed timely filed and served nunc pro tunc.

144. That this action is being commenced within one year and ninety days of the occurrence complained herein.

145. This action falls within one or more of the exceptions set forth in CPLR § 1602.

146. The defendants, CITY OF NEW YORK, THE NYC BOARD AND/OR DEPARTMENT OF EDUCATION, LORENZO CHAMBERS, “ JANE” STEIN and their agents, servants and/or employees, departments, agencies and those acting under their directions behest and control, were careless, reckless and negligent in their failure to properly investigate and/or evaluate the results of any investigation; in being careless, reckless and negligent in hiring, supervising, managing, instructing and controlling the Principal of P.S. 279, LORENZO CHAMBERS, the Assistant Principal at P.S. 279 “ JANE” STEIN and those persons, agents, servants and/or employees hired to operate, manage, control, supervise, teach at and/or run said School; in failing to hire efficient and/or sufficient personnel in connection with the operation, management, control, teaching at and/or supervision of said School; in failing to train their employees so as to enable them to control students and/or persons in classrooms and school yard; in failing to investigate and/or properly investigate the situation; were careless, reckless and negligent in their performance of their educational, supervisory, child safety and protection, guidance duties, functions and obligation; in failing to adequately train their employees so as to enable them to control students and/or persons in classrooms and in the school yard; in failing to properly and/or adequately supervise the teaching

curriculum and/or activities provided by and/or at said School; in failing to promulgate proper and/or adequate rules and regulations governing the proper teaching curriculum and/or supervision, guidance and discipline to be provided and rendered by those agents, servants and/or employees hired to operate, manage, control, supervise, teach at and/or run said School; in failing to promulgate proper and/or adequate rules and/or regulations governing the proper care, guidance, discipline, safety and/or supervision to be provided and rendered to those utilizing said Public School; in failing to properly and/or adequately monitor the care, guidance, discipline and/or supervision provided at said School; in failing to properly and/or adequately provide guidance for the safety of and/or supervise the infant plaintiff herein; in failing to properly and/or adequately monitor and/or supervise the activities in which the infant plaintiff was involved in on the day of the incident; in failing to control students and in failing to prevent and/or stop inappropriate activity; in failing to adequately and properly supervise schoolyard activities; in failing to adequately and properly monitor, supervise and control the conduct and actions of LORENZO CHAMBERS, “ JANE” STEIN; in failing to promulgate, enforce and provide proper and adequate rules and regulations regarding discipline, conduct, childish behavior and misbehavior of Public School children and students, which are fair, constitutional and in accordance with their Civil Rights and which prevent any injury and damage to the health and welfare of the children under their care and prevent unnecessary physical, emotional and psychological abuse, injury and damage; in causing, permitting and allowing the seizure, confinement, false arrest, handcuffing and imprisonment of the infant plaintiff MALIK ALI on school grounds, to and at the 69th Pct.; in carelessly, recklessly and negligently failing to prevent the aforesaid incident; the 10 year old child MALIK ALI was not properly protected from the

aforesaid conduct, actions, intimidation and abuse by defendants LORENZO CHAMBERS and “ JANE” STEIN.

147. The defendants CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, NYC Police Officers JOHN DOES”, their agents, servants and/or employees were careless, reckless and negligent in failing to properly train, instruct, supervise, monitor and control its officers, agents, servants and employees; were careless, reckless and negligent in the performance of their law enforcement functions and duties; in that they failed to properly and adequately investigate the situation, question witnesses and respect and pay attention to the 10 year old infant plaintiff; in falsely detaining, arresting and imprisoning the said 10 year old infant plaintiff in a careless, reckless and negligent manner; in negligently, carelessly and recklessly failing to prevent the aforesaid incident; in causing, permitting and allowing the false arrest and imprisonment, excessive force, abuse and handcuffing of the 10 year old child, MALIK ALI, for approximately 4 hours, deprivation of his civil rights and denial of access to his parents and guardians; in that they failed to employ adequate, competent personnel, training, supervision and inspection; in that they maintained and controlled their police officers and investigators, with a reckless disregard for the safety and welfare of said 10 year old infant claimant MALIK ALI; in that they failed to employ sufficient and adequate personnel and employees. That the CITY of NEW YORK, the NYCPD and the NYCPD 69th PCT., their agents, servants and employees on and before March 22, 2013 employed, engaged in, accepted, permitted and allowed a policy and/or custom and decision promulgated by the NYCPD, THE NYCPD 69th Pct., and the Police officers of the 69th Pct., of excessive and abusive force, lack of discretion and improper, careless, reckless and negligent investigation practices and procedures, racial and socio-economic bias and physical force and a

disregard regarding the health, welfare and safety of children, specifically the 10 year old infant MALIK ALI herein. The aforesaid actions and conduct by THE NEW YORK CITY POLICE DEPARTMENT 69th Pct. and the unidentified police officers of NYCPD 69th Pct., their false arrest and imprisonment of 10 year old MALIK ALI, the isolating, imprisoning, handcuffing, denial and deprivation of his civil rights, their denial and refusing access to this 10 year old child to his parents for over 4 hours while keeping him handcuffed to a wall, occurred pursuant to the practice of the NYCPD AND THE 69th Pct. of abuse, physical force and deprivation of Civil Rights that was so permanent and well settled as to constitute a custom and usage with the force of law. The CITY OF NEW YORK, NYCPD and NYCPD 69th PCT., failed to adequately and properly train the aforesaid unidentified police officers of the 69th Pct., with a deliberate indifference to the Civil Rights of the infant 10 year old MALIK ALI and his parents, in violation of 42USC § 1983. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, the 69th Pct., their agents, servants and/or employees deprived the said claimants, the 10 year old child, MALIK ALI and his parent, KAMIL ALI, of due process and violated their Civil Rights under the constitution of the State of New York and the United States of America, as well as all applicable Civil Rights statutes, laws, ordinances, rules and regulations of the City and State of New York and the United States of America/Federal Government. Defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, NYC Police Officers “JOHN DOES”, their agents, servants and/or employees maliciously assaulted and handcuffed the 10 year old plaintiff, verbally abused and humiliated and embarrassed the 10 year old plaintiff and defamed his character. Defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees and their unidentified NYCPD officers of the 69th Pct. wrongfully, unlawfully,

falsely and maliciously held, confined, restrained and imprisoned the said 10 year old plaintiff , MALIK ALI, handcuffed him for extended hours of time, falsely arrested him and deprived him of his liberty, violated his civil rights, isolated him and deprived him access to his parent and guardian, denied him access to legal counsel and verbally physically and emotionally abused, defamed, humiliated, intimidated and embarrassed this 10 year old child; all of which caused and inflicted serious injury and damage to the 10 year old plaintiff MALIK ALI, herein set forth.

148. That as a result of the aforesaid incident the infant plaintiff, MALIK ALI was caused to sustain serious and severe personal injuries.

149. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff MALIK ALI sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable deprivation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and plaintiffs were caused to incur and continues to incur expenses for medical attention and treatment.

150. That the said occurrence and the injuries and damages to the infant plaintiff, MALIK ALI, resulting therefrom were caused solely and wholly by reason of the carelessness, recklessness and negligence of the defendants, their agents, servants and/or employees.

151. That by reason of the foregoing, the infant plaintiff, MALIK ALI, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION ON BEHALF OF THE
INFANT PLAINTIFF, MALIK ALI**

152. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs 1 - 151 with the same force and effect as though the same were more fully set forth at length hereat.

153. The defendants are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of unreasonably seizing and unlawfully arresting New York City public school students, and infant plaintiff MALIK ALI in particular, absent probable cause of criminal activity in violation of the Fourth and Fourteenth Amendments to the United States Constitution and without a warrant.

154. Defendants, LORENZO CHAMBERS, “JANE” STEIN and NYC Police Officers “JOHN DOES” are liable pursuant to 42 U.S.C. § 1983 for unreasonably confining, detaining, seizing and unlawfully arresting and imprisoning the infant plaintiff, MALIK ALI, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

155. The defendants, their agents, servants and/or employees deprived the infant plaintiff, MALIK ALI of due process and violated his Civil Rights under the Constitution and Laws of the State of New York and the United States of America, as well as all applicable Civil Rights Statutes, Laws, Ordinances, rules and regulations of the City and State of New York and the United States of American Federal Government.

156. This action falls within one or more of the exceptions set forth in CPLR § 1602.

157. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff MALIK ALI, sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

158. That by reason of the foregoing, the infant plaintiff, MALIK ALI, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FORTEENTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF MALIK ALI**

159. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs 1-158 with the same force and effect as though the same were more fully set forth at length hereat.

160. The defendants, their agents, servants and/or employees wrongfully, unlawfully, maliciously assaulted, handcuffed, humiliated, embarrassed, seized, confined and imprisoned

the infant plaintiff at his school, in a police vehicle and at the NYCPD 69th Pct. for 4 hours, in view of his friends, neighbors, teachers, relatives and others, causing him severe personal injuries.

161. The defendants CITY OF NEW YORK, NYC BOARD AND/OR DEPARTMENT OF EDUCATION AND THE NYCPD are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of using excessive force against New York City public school children and students and the infant plaintiff, MALIK ALI in particular, violation of the Fourth and Fourteenth Amendments to the United States Constitution.

162. Defendants NYC Police Officers “JOHN DOES” are liable pursuant to 42 U.S.C. § 1983 for using excessive force against the infant plaintiff, MALIK ALI in violation of the Fourth and Fourteenth Amendment to the United States Constitution.

163. Defendants LORENZO CHAMBERS and “JANE” STEIN are liable pursuant to 42 U.S.C. § 1983 for causing, permitting and allowing the use of excessive force against the infant plaintiff, MALIK ALI in violation of the Fourth and Fourteenth Amendment to the United States Constitution.

164. That the defendants, their agents, servants and/or employees acted under color of State Law to deprive the infant plaintiff MALIK ALI of his right to be free of excessive force as guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution as enforced by 42 U.S.C. § 1983.

165. This action falls within one or more of the exceptions set forth in CPLR § 1602.

166. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff MALIK ALI sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable deprivation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

167. That by reason of the foregoing, the infant plaintiff, MALIK ALI, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTEENTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF MALIK ALI**

168. Plaintiffs repeat, reiterate and reallege each and every allegation Contained in the paragraphs 1-167 with the same force and effect as though the same were more fully set forth at length hereat.

169. That the defendants are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of committing abuses against New York City public school

students and the infant plaintiff, MALIK ALI, depriving him of substantive due process that shocks the conscience in violation of the Fourteenth Amendment to the United States Constitution.

170. Defendants LORENZO CHAMBERS and “JANE” STEIN AND NYC Police Officers “JOHN DOES” are liable pursuant to 42 U.S.C. § 1983 for abuses against the infant plaintiff, MALIK ALI, depriving him of substantive due process that shocks the conscience in violation of the Fourteenth Amendment to the United States Constitution.

171. This action falls within one or more of the exceptions set forth in CPLR § 1602.

172. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff MALIK ALI sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable deprivation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

173. That by reason of the foregoing, the infant plaintiff, MALIK ALI, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF KAMANI GARNETT**

174. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-173 with the same force and effect as though the same were more fully set forth at length hereat.

175. By their actions, as set forth in this complaint and exhibits annexed, the defendants, their agents, servants and/or employees, in their official and individual capacities, acted under color of State Law to deprive the infant plaintiff, MALIK ALI of his right to be free from false arrest and false imprisonment as guaranteed by the Fourth and Fourteenth Amendments of the Federal Constitution, as enforced by to 42 U.S.C. § 1983.

176. This action falls within one or more of the exceptions set forth in CPLR § 1602.

177. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff MALIK ALI sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United

States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

178. That by reason of the foregoing, the infant plaintiff, MALIK ALI, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF MALIK ALI**

179. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-178 with the same force and effect as though the same were more fully set forth at length hereat.

180. The defendants CITY OF NEW YORK, NYC BOARD AND/OR DEPARTMENT OF EDUCATION AND NYCPD are liable for the unreasonable seizures and unlawful arrests of New York City public school children and students and plaintiff MALIK ALI in particular, in violation of Article 1 § 12 of the New York Constitution.

181. Defendants, NYC Police Officers "JOHN DOES" are liable pursuant to Article 1 § 12 of the New York Constitution for unreasonable seizure and unlawful arrest of the infant plaintiff, MALIK ALI.

182. Defendants, LORENZO CHAMBERS and "JANE" STEIN are liable pursuant to Article 1 § 12 of the New York Constitution for causing, permitting and allowing the unreasonable seizure and unlawful arrest of the infant plaintiff, MALIK ALI.

183. This action falls within one or more of the exceptions set forth in CPLR § 1602.

184. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff MALIK ALI sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable deprivation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

185. That by reason of the foregoing, the infant plaintiff, MALIK ALI, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A EIGHTEENTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF MALIK ALI**

186. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-185 with the same force and effect as though the same were more fully set forth at length hereat.

187. The Defendants, CITY OF NEW YORK, NYC BOARD AND/OR DEPARTMENT OF EDUCATION and NYCPD are liable for the false arrest of New York City public school children and students and the infant plaintiff, MALIK ALI in particular, in

violation of New York Law.

188. Defendants, NYC Police Officers “JOHN DOES” are liable for the false arrest of the infant plaintiff, MALIK ALI in violation of New York State law.

189. Defendants, LORENZO CHAMBERS AND “JANE” STEIN are liable for causing, permitting and allowing the false arrest of the infant plaintiff, MALIK ALI in violation of New York State law.

190. This action falls within one or more of the exceptions set forth in CPLR § 1602.

191. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff MALIK ALI sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable deprivation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

192. That by reason of the foregoing, the infant plaintiff, MALIK ALI, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A NINETEENTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF MALIK ALI**

193. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-192 with the same force and effect as though the same were more fully set forth at length hereat.

194. The Defendants, CITY OF NEW YORK, NYC BOARD AND/OR DEPARTMENT OF EDUCATION and NYCPD are liable for the assault and battery of New York City public school children and students and the infant plaintiff, MALIK ALI in particular, in violation of New York Law.

195. Defendants, NYC Police Officers “JOHN DOES” are liable for the assault and battery of the infant plaintiff, MALIK ALI in violation of New York State law.

196. Defendants, LORENZO CHAMBERS and “JANE” STEIN are liable for causing, permitting and allowing the assault and battery of the infant plaintiff, MALIK ALI in violation of New York State law.

197. This action falls within one or more of the exceptions set forth in CPLR § 1602.

198. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff MALIK ALI sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and

others, has suffered unconscionable deprivations and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

199. That by reason of the foregoing, the infant plaintiff, MALIK ALI, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A TWENTIETH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF MALIK ALI**

200. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-199 with the same force and effect as though the same were more fully set forth at length hereat.

201. That all accusations and charges against the infant plaintiff, MALIK ALI were false which was at all times known to the defendants, their agents, servants and/or employees.

202. That the defendants, their agents, servants and/or employees falsely arrested, imprisoned and maliciously prosecuted the infant plaintiff, MALIK ALI and as a result of defendants abuse of process, the infant plaintiff was caused and subjected to great indignation and humiliation, embarrassment, pain and distress of mind and body and suffered injury and damage and defamation of his good name and reputation in the community, among his friends, neighbors, teaches and others.

203. This action falls within one or more of the exceptions set forth in CPLR § 1602.

204. That as a result of the defendants aforesaid conduct, actions, negligence, Carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff MALIK ALI sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

205. That by reason of the foregoing, the infant plaintiff, MALIK ALI, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A TWENTYFIRST CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF MALIK ALI**

206. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-205 with the same force and effect as though the same were more fully set forth at length hereat.

207. As a result of the defendants and their agents, servants and/or employees' intentional, concerted, conspired, wanton, malicious, egregious and shocking actions and conduct and their gross negligence and recklessness as set forth in this complaint, the infant plaintiff, MALIK ALI claims punitive damages against the defendants.

208. This action falls within one or more of the exceptions set forth in CPLR § 1602.

209. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff MALIK ALI sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable deprivation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

210. That by reason of the foregoing, the infant plaintiff, MALIK ALI, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A TWENTYSECOND CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFFS KAMIL ALI AND ROSEANNA GRANT**

211. Plaintiffs repeat and reiterates and realleges each and every allegation

contained in the paragraphs 1-210 with the same force and effect as though the same were more fully set forth at length hereat.

212. At all times herein mentioned, the plaintiffs KAMIL ALI AND ROSEANNA GRANT still are the parents and natural guardians of the infant plaintiff, MALIK ALI and said plaintiffs were entitled to the services, society and companionship of the infant plaintiff, MALIK ALI.

213. That by reason of the forgoing, plaintiffs KAMIL ALI and ROSEANNA GRANT, have been deprived of the services, society and companionship of infant plaintiff, MALIK ALI and caused to incur and continues to incur expenses and costs for his medical care and treatment for injuries and damages caused by the defendants' aforesaid conduct, actions, carelessness, recklessness and negligence.

214. The plaintiffs KAMIL ALI and ROSEANNA GRANT, sustained and continue to suffer pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress unconscionable depravation and denial of due process and their Civil Rights guaranteed under the Constitution of the United States of America and the State of New York, as well as the Civil rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of American/Federal Government.

215. That by reason of the forgoing, plaintiffs KAMIL ALI and ROSEANNA GRANT, have been damaged in a sum which exceeds the jurisdictional limits of all lower costs which would otherwise have jurisdiction and these plaintiffs further claim punitive damages against the defendants as a result of their intentional, concerted, conspired, wanton, malicious,

egregious and shocking actions and conduct and their gross negligence and recklessness as set forth in this Complaint.

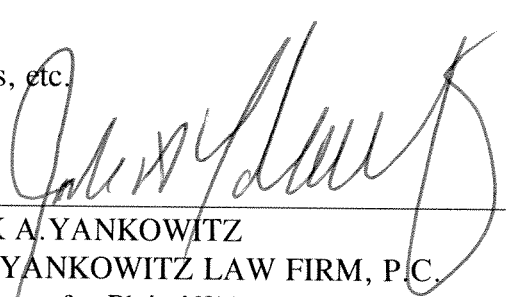
216. This action falls within one or more of the exceptions set forth in CPLR § 1602.

217. That by reason of the foregoing, the plaintiffs KAMIL ALI and ROSEANNA GRANT have been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, plaintiffs demand judgment against the defendants on the FIRST, SECOND, THIRD, FOURTH, FIFTH, SIXTH, SEVENTH, EIGHTH, NINTH, TENTH, ELEVENTH, TWELVETH, THIRTEENTH, FORTEENTH, FIFTEENTH, SIXTEENTH, SEVENTEENTH, EIGHTEENTH, NINETEENTH, TWENTIETH, TWENTYFIRST, AND TWENTYSECOND CAUSES OF ACTION, for damages in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction in all Actions and Punitive Damages, together with costs, attorney fees and disbursements of these actions.

Dated: Great Neck, New York
June 10, 2013

Yours, etc.



JACK A. YANKOWITZ
THE YANKOWITZ LAW FIRM, P.C.
Attorneys for Plaintiff(s)

KAMANI GARNETT, infant by his mother and
guardian COLINA GARNETT, MALIK ALI, infant
by his parents and natural guardians, ROSEANNA
GRANT AND KAMAL ALI
175 East Shore Road
Great Neck, NY 11023

(516) 622-6200
Our File No. 7536-12

ATTORNEY'S VERIFICATION

JACK A. YANKOWITZ, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

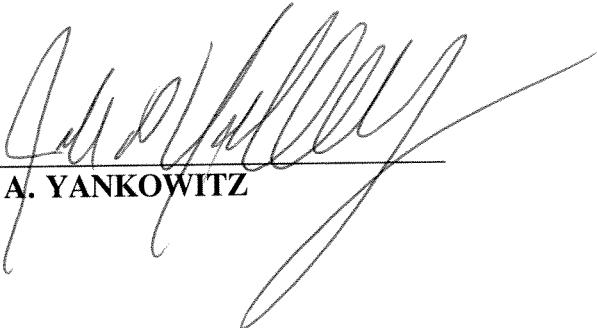
I am an attorney at THE YANKOWITZ LAW FIRM, P.C., attorneys of record for Plaintiff(s), infant KAMANI GARNETT, infant MALIK ALI, COLINA GARNETT, KAMIL ALI AND ROSEANNA GRANT in the action within. I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff(s) is that Plaintiff(s) is/are not presently in the county wherein the attorneys for the Plaintiff(s) maintain their offices.

DATED: Great Neck, NY
May 10, 2013



JACK A. YANKOWITZ

NOTICE OF CLAIM

-----X
In the Matter of the Claim of

KAMANI GARNETT, Infant, by
COLINA GARNETT parent and natural guardian,
and COLINA GARNETT Individually

- against -

THE CITY OF NEW YORK
NEW YORK CITY BOARD OF EDUCATION,
PS 279, LORENZO CHAMBERS,
NEW YORK CITY POLICE DEPARTMENT,
NYCPD 69TH PRECINCT AND
POLICE OFFICERS OF THE 69TH PRECINCT WHOSE NAMES AND IDENTITIES
ARE PRESENTLY UNKNOWN

-----X

TO: The Comptroller of the City of New York
Municipal Building
New York, New York 10007

NEW YORK CITY BOARD OF EDUCATION, P.S.279 AND
LORENZO CHAMBERS
65 Court Street, Room 809, Brooklyn, New York 11201

P.S. 279
1070 East 104th Street, Brooklyn, NY 11236

NEW YORK CITY POLICE DEPARTMENT
NYCPD 69TH PCT AND CERTAIN UNIDENTIFIED OFFICERS
1 Police Plaza
New York, New York

NYCPD 69TH PRECIENT AND VARIOUS UNIDENTIFIED OFFICERS
9720 Forest Avenue, Brooklyn, New York

PLEASE TAKE NOTICE that the undersigned claimant hereby makes
claim and demands against you as follows:

1. Name and post office address of each claimant and claimants'
attorneys is:

Claimant

KAMANI GARNETT, infant
COLINA GARNETT
1097 East 95th Street
Brooklyn, NY 11236

Attorney

THE YANKOWITZ LAW FIRM, PC
175 East Shore Road
Great Neck, NY 11023
(516) 622-6200

2. The nature of the claim: To recover money damages for personal injuries, pain and suffering, emotional and psychological damages, humiliation, intimidation, embarrassment, defamation of character, medical expenses and related damages, deprivation of Civil Rights, false arrest and false imprisonment, assault and battery, malicious prosecution and all damages permitted by Statute and Case Law, incurred by and on behalf of the 10 year old infant claimant KAMANI GARNETT, , and punitive damages, by reason of his false arrest/false imprisonment, deprivation of Civil Rights, assault and battery, malicious prosecution, physical, verbal and emotional abuse, excessive force and abuse, complicity in causing excessive and unnecessary infliction of physical, verbal and emotional abuse, and the negligence, carelessness and recklessness committed by THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, certain police officers of the NYCPD 69th Pct. whose names and identities are presently unknown, and their agents, servants and/or employees and by the NEW YORK CITY BOARD OF EDUCATION, P.S. 279 and LORENZO CHAMBERS.

3. The time when, the place where and the manner in which the Claim arose: Upon information and belief, the claim arose on March 22, 2012 at approximately 11:30 AM to 12:00 noon, while the 10 year old infant, KAMANI GARNETT, a fourth grade student was in attendance at Public School 279 located at 1070 East 104th Street, Brooklyn, New York.

At said time, date and place, LORENZO CHAMBERS (Principal at P.S. 279) caused 10 year old infant KAMANI GARNETT to be removed from his scheduled school activity, brought to his office where he, without notifying the child's parent and guardian Colina Garnett, without permission from the child's mother and guardian, Colina Garnett, commenced an interrogation. The principal, Lorenzo Chambers confined the 10 year old KAMANI GARNETT, intimidated and verbally abused and threatened the 10 year old KAMANI GARNETT with police arrest and imprisonment if he did not admit he was part of an incident which occurred on March 21, 2012 where some paint was found on a schoolyard slide and schoolyard ground. Lorenzo Chambers continued to confine the child and then telephoned his mother Colina Garnett falsely stating she had "video" that showed her son participating in putting paint on the schoolyard with other children and demanded that she come to the school immediately to discuss the matter; Mr. Chambers further stated to Ms. Garnett that he intends to have the children clean up the paint or they will be suspended. Thereafter, as Ms. Garnett was leaving her home to get to P.S. 279, she received a telephone call from P.S. 279 wherein a female employee advised Colina Garnett to go to the 69th Pct. to pick up her 10 year old child KAMANI GARNETT. Ms. Garnett demanded to speak to the principal, Lorenzo Chambers who then stated to her that he decided to "Scare her 10 year old child Kamani", and "make an example of him", to scare and intimidate the other children in his school.

Upon information and belief, shortly thereafter, Lorenzo Chambers caused 2 uniformed police officers from the 69th Pct. to

arrive at P.S. 279, and they arrested 10 year old KAMANI GARNETT and two other children (Tyeisha Wright, female and Malik Ali, male); placed them in a police car and took them to the 69th Pct.

At the 69th Pct. 10 year old KAMANI GARNETT was falsely arrested and imprisoned and treated like a hardened criminal; he was forced to empty his pockets; he was patted down; he was placed into a room and handcuffed to a wall for approximately 4 hours; he was denied food and drink; he was denied access to legal counsel during the entire time of his incarceration and imprisonment; he was denied access and permission to see and speak with his mother and guardian Colina Garnett during the entire time of the 4 hour incarceration and imprisonment even though she was present in the precinct and demanding to see her 10 year old child. The aforesaid officers of the 69th Pct. used excessive and unnecessary force, falsely and unnecessarily imprisoned and handcuffed this 10 year old child for approximately 4 hours, during which time they verbally threatened and intimidated this child, deprived him of his constitutional and civil rights, denied, refused and deprived access to his mother Colina Garnett.

THE CITY OF NEW YORK, THE NYC BOARD OF EDUCATION, its employee LORENZO CHAMBERS, THE NYC POLICE DEPARTMENT, THE NYCPD 69th PCT. and the aforesaid certain police officers of the 69th Pct. whose identities are presently unknown, falsely and unnecessarily confined, imprisoned, verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed the 10 year old infant, KAMANI GARNETT; they used excessive and unnecessary force, handcuffing this child to a wall in the 69th Pct for approximately 4 hours.

At all times following and during the aforesaid, confinement, false arrest and imprisonment, handcuffing and deprivation of the civil rights of the of the 10 year old child, KAMANI GARNETT, LORENZO CHAMBERS and the other aforesaid unidentified NYC police officers and NYCPD, 69TH Pct. and their agents and employees possessed information and knowledge that the claims and accusations against the 10 year old child KAMANI GARNETT were false and without merit and he had not committed a criminal act. The aforesaid false arrest and imprisonment of the 10 year old KAMANI GARNETT was made without a warrant and without probable cause to believe a crime was committed.

The NYCPD, 69TH Pct., and certain unidentified police officers failed and refused to permit the 10 year old KAMANI GARNETT to have access, contact or communication with his mother COLINA GARNETT during the entire time the child was imprisoned, confined and handcuffed; the 10 year old child KAMANI GARNETT was denied and deprived of his civil rights both State and Federal, (including but not limited to 42USC § 1983, 1981 and the Fourth Amendment of the United States Constitution), was refused access to his mother and guardian, COLINA GARNETT, refused access to an attorney and was verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed by NYCPD officers, the 69th Pct. and the NYCPD.

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and the NYCPD 69TH Pct., their agents, servants and/or employees and the aforesaid unidentified police officers of the 69TH Pct. were careless, reckless and negligent in failing to properly train, instruct, supervise, monitor and control its agents, servants and employees; were careless, reckless and negligent in the performance of their law enforcement functions and duties; in that they failed to properly and adequately investigate the situation, question witnesses and respect and pay attention to the 10 year old infant claimant; in falsely detaining, arresting and imprisoning the said 10 year old infant claimant in a careless, reckless and negligent manner; in negligently, carelessly and recklessly failing to prevent the aforesaid incident; in causing, permitting and allowing the false arrest and imprisonment, excessive force, abuse and handcuffing of the 10year old child, KAMANI GARNETT, for 4 hours, deprivation of his civil rights and denial of access to his mother and guardian; in that they failed to employ adequate, competent personnel, training, supervision and inspection; in that they maintained and controlled their police officers and investigators, in a reckless disregard for the safety and welfare of said 10 year old infant claimant KAMANI GARNETT; in that they failed to employ sufficient and adequate personnel and employees. That the CITY of NEW YORK, the NYCPD and the NYCPD 69TH PCT., their agents, servants and employees on and before March 22, 2012 employed, engaged in, accepted, permitted and allowed a policy and/or custom and decision promulgated by the NYCPD, THE NYCPD 69TH pct., and the Police officers of the 69TH Pct., of excessive and abusive force, lack of discretion and improper, careless, reckless and negligent investigation practices and procedures, racial and socio-economic bias and physical force and a disregard regarding the health, welfare and safety of children, specifically the 10 year old infant KAMANI GARNETT herein. The aforesaid actions and conduct by THE NEW YORK CITY POLICE DEPARTMENT 69TH Pct. and the unidentified police officers of NYCPD 69TH Pct., their false arrest and imprisonment of 10 year old KAMANI GARNETT, the isolating, imprisoning, handcuffing, denial and deprivation of his civil rights, their denial and refusing access to this 10 year old child by his mother for 4 hours while keeping him handcuffed to a wall, occurred pursuant to the practice of the NYCPD AND THE 69TH Pct. of abuse, physical force and deprivation of Civil Rights that was so permanent and well settled as to constitute a custom and usage with the force of law.

The CITY OF NEW YORK, NYCPD and NYCPD 69TH PCT., failed to adequately and properly train the aforesaid unidentified police officers of the 69TH Pct., with a deliberate indifference to the Civil Rights of the infant 10 year old KAMANI GARNETT and his mother, in violation of 42USC § 1983. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, the 69TH PCT., their agents, servants and/or employees deprived the said claimants, the 10 year old child, KAMANI GARNETT and his mother, COLINA GARNETT of due process and violated their Civil Rights under the constitution of the State of New York and the United States of America, as well as all applicable Civil Rights statutes, laws, ordinances, rules and

regulations of the City and State of New York and the United States of America/Federal Government. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, 69TH PCT., their agents, servants and/or employees maliciously assaulted and handcuffed the 10 year old claimant, verbally abused and humiliated and embarrassed the 10 year old claimant, KAMANI GARNETT and defamed his character. THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, the 69TH PCT., their agents, servants and/or employees wrongfully, unlawfully, falsely and maliciously held, confined, restrained and imprisoned the said 10 year old claimant, KAMANI GARNETT, handcuffed him for extended hours of time, falsely arrested him and deprived him of his liberty, violated his civil rights, isolated him and deprived him access to his mother and guardian, denied him access to legal counsel and verbally physically and emotionally abused, defamed, humiliated, intimidated and embarrassed this 10 year old child; all of which caused and inflicted serious injury and damage to the 10 year old claimant KAMANI GARNETT, herein set forth.

Upon information and belief, the CITY OF NEW YORK, Law Department, Office of the Corporation Counsel refused to file a petition and refused to file any charges against the infant claimant, 10 year old KAMANI GARNETT.

THE CITY OF NEW YORK, THE BOARD OF EDUCATION, P.S. 279, LORENZO CHAMBERS, their agents, servants and/or employees, departments, agencies and those acting under their directions behest and control, were careless, reckless and negligent in their failure to properly investigate and/or evaluate the results of any investigation; in being careless, reckless and negligent in hiring, supervising, managing and controlling the principal of P.S. 279, LORENZO CHAMBERS and of those persons, agents, servants and/or employees hired to operate, manage, control, supervise, teach at and/or run said School; in failing to hire efficient and/or sufficient personnel in connection with the operation, management, control, teaching at and/or supervision of said School; in failing to train their employees so as to enable them to control students and/or persons in classrooms; in failing to adequately train their employees so as to enable them to control students and/or persons in classrooms; in failing to properly and/or adequately supervise the teaching curriculum and/or activities provided by and/or at said School; in failing to promulgate proper and/or adequate rules and regulations governing the proper teaching curriculum and/or supervision to be provided and rendered by those agents, servants and/or employees hired to operate, manage, control, supervise, teach at and/or run said School; in failing to promulgate proper and/or adequate rules and/or regulations governing the proper care, guidance and/or supervision to be provided and rendered to those utilizing said Public School; in failing to properly and/or adequately monitor the care, guidance and/or supervision provided at said School; in failing to properly and/or adequately provide guidance for and/or supervise the infant claimant herein; in failing to properly and/or adequately monitor and/or supervise the activities in which

the infant claimant was involved in on the day of the incident; in failing to control students, in failing to prevent and/or stop inappropriate activity; in failing to adequately and properly supervise schoolyard activities; in failing to adequately and properly monitor, supervise and control the conduct and actions of Lorenzo Chambers; in failing to promulgate, enforce and provide proper and adequate rules and regulations regarding childish behavior and misbehavior of Public School children and students, which are fair, constitutional and in accordance with their Civil Rights and which prevent any injury and damage to the health and welfare of the children under their care and prevent unnecessary physical, emotional and psychological abuse, injury and damage; the 10 year old child KAMANI GARNETT was not properly protected from the aforesaid conduct, actions, intimidation and abuse by LORENZO CHAMBERS.

Upon information and belief, the aforementioned paint in the school yard of P.S. 279 was very limited and was washed away with water. There was no damage to the premises. The 10 year old KAMANI GARNETT, is the victim who was falsely arrested, imprisoned and handcuffed in a police precinct for 4 hours, and physically, emotionally abused, intimidated, humiliated and deprived of his Civil and Constitutional rights and subject to unconscionable, unnecessary and excessive physical, emotional and psychological abuse by Lorenzo Chambers, police officers of the NYCPD 69TH Pct., The City of New York and the New York City Police Department.

4. The infant Claimant KAMANI GARNETT sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment. The 10 year old infant claimant, KAMANI GARNETT, has suffered damages in the sum of FIFTY MILLION DOLLARS (\$50,000,000.00).

Infant Claimant KAMANI GARNETT further claims punitive damages in the amount of FIFTY MILLION (\$50,000,000.00) DOLLARS as a result of the aforesaid, concerted, conspired, wanton, willful and intentional assault/battery, false arrest, false imprisonment, physical, verbal, emotional and psychological abuse inflicted upon the 10 year old infant claimant and the aforesaid deprivation of the Civil and Constitutional Rights of the infant claimant, KAMANI GARNETT, a 10 year old child.

The claimant, COLINA GARNETT sustained and continues to suffer pain and distress, emotional and psychological injury and

damage, great indignity, embarrassment and humiliation, pain and distress unconscionable depravation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant COLINA GARNETT was caused to incur and continues to incur expenses for medical attention and treatment on behalf of her son, the infant claimant, KAMANI GARNETT and she has suffered damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

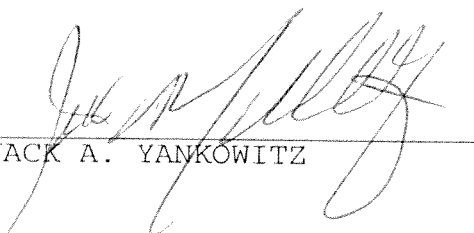
Claimant COLINA GARNETT further claims punitive damages in the amount of TEN MILLION (\$10,000,000.00) DOLLARS as a result of the aforesaid, concerted, conspired, wanton, willful and intentional assault/battery, false arrest, confinement, false imprisonment, physical, verbal, emotional and psychological abuse inflicted upon her son, infant claimant KAMANI GARNETT and the aforesaid deprivation of her Civil and Constitutional Rights and those of her son infant claimant, KAMANI GARNETT, a 10 year old child.

The undersigned and claimants herein therefore present these claims for adjustment and payments. You are hereby notified that unless said claims are adjusted and paid within the time provided by law from the date of presentation to you, the claimants intend to commence an action on these claims.

Dated: Great Neck, New York
February 7, 2013



THE YANKOWITZ LAW FIRM, P.C.
Attorney for Claimant
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200



JACK A. YANKOWITZ

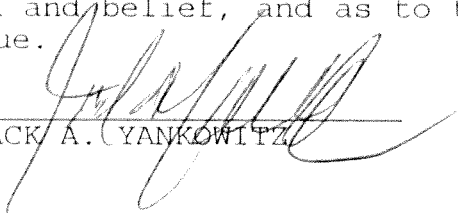
VERIFICATION

STATE OF NEW YORK

ss.:

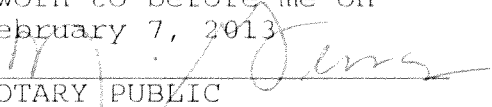
COUNTY OF NASSAU }

JACK A. YANKOWITZ, being duly sworn, deposes and says that deponent is the attorney for the above-named claimant; deponent has read the foregoing NOTICE OF CLAIM and know its contents; the same is true to deponent's knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters deponent believes it to be true.



JACK A. YANKOWITZ

Sworn to before me on
February 7, 2013



NOTARY PUBLIC

MARIELA GERMAN
NOTARY PUBLIC, STATE OF NEW YORK
NO. 0106010248
QUALIFIED IN NASSAU COUNTY
TERM EXPIRES SEPTEMBER 20, 20 14

In the Matter of the Claim of
KAMANI GARNETT, infant, by COLINA GARNETT
parent and natural guardian, and
COLINA CARNETT, individually,

-against-

THE CITY OF NEW YORK
NEW YORK CITY BOARD OF EDUCATION
P.S. 279, LORENZO CHAMBERS,
NEW YORK CITY POLICE DEPARTMENT
NYCPD 69TH PRECINCT AND
POLICE OFFICERS OF THE 69TH PRECINCT WHOSE NAMES
AND IDENTITIES ARE PRESENTLY UNKNOWN

NOTICE OF CLAIM

THE YANKOWITZ LAW FIRM, P.C.

Attorneys for Claimants

**175 East Shore Road
Great Neck, NY 11023
(516)622-6200**

TO:

NOTICE OF CLAIM

-----X
In the Matter of the Claim of

MALIK ALI, Infant, by
ROSEANN GRANT and KAMAL ALI parents and natural guardians,
and ROSEANN GRANT and KAMAL ALI Individually

- against -

THE CITY OF NEW YORK
NEW YORK CITY BOARD OF EDUCATION,
PS 279, LORENZO CHAMBERS, MS. STEIN,
NEW YORK CITY POLICE DEPARTMENT,
NYCPD 69TH PRECINCT AND
POLICE OFFICERS OF THE 69TH PRECINCT WHOSE NAMES AND IDENTITIES
ARE PRESENTLY UNKNOWN

-----X

TO: The Comptroller of the City of New York
Municipal Building
New York, New York 10007

NEW YORK CITY BOARD OF EDUCATION, P.S. 279 AND
LORENZO CHAMBERS, MS. STEIN
65 Court Street, Room 809, Brooklyn, New York 11201

P.S. 279
1070 East 104th Street, Brooklyn, NY 11236

NEW YORK CITY POLICE DEPARTMENT
NYCPD 69TH PCT AND CERTAIN UNIDENTIFIED OFFICERS
1 Police Plaza
New York, New York

NYCPD 69TH PRECINCT AND VARIOUS UNIDENTIFIED OFFICERS
9720 Forest Avenue, Brooklyn, New York

PLEASE TAKE NOTICE that the undersigned claimant hereby makes
claim and demands against you as follows:

1. Name and post office address of each claimant and claimants'
attorneys is:

Claimant

MALIK ALI, infant
ROSEANN GRANT and KAMAL ALI
1130 East 98th Street
Brooklyn, NY 11236

Attorney

THE YANKOWITZ LAW FIRM, PC
175 East Shore Road
Great Neck, NY 11023
(516) 622-6200

2. The nature of the claim: To recover money damages for personal injuries, pain and suffering, emotional and psychological damages, humiliation, intimidation, embarrassment, defamation of character, medical expenses and related damages, deprivation of Civil Rights, false arrest and false imprisonment, assault and battery, malicious prosecution and all damages permitted by Statute and Case Law, incurred by and on behalf of the 10 year old infant claimant KAMIL ALI, and punitive damages, by reason of his false arrest/false imprisonment, deprivation of Civil Rights, assault and battery, malicious prosecution, physical, verbal and emotional abuse, excessive force and abuse, complicity in causing excessive and unnecessary infliction of physical, verbal and emotional abuse, and the negligence, carelessness and recklessness committed by THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, certain police officers of the NYCPD 69th Pct. whose names and identities are presently unknown, and their agents, servants and/or employees and by the NEW YORK CITY BOARD OF EDUCATION, P.S. 279 and LORENZO CHAMBERS and MS. STEIN.

3. The time when, the place where and the manner in which the Claim arose: Upon information and belief, the claim arose on or about March 22, 2012 at approximately 12:30 to 1:00 PM, while the 10 year old infant, MALIK ALI, was attending a hearing at District 18 office of the NYC Board of Education. Upon information and belief, the Principal Lorenzo Chambers and Assistant Principal Ms. Stein participated and/or were present at said hearing.

At said time, date and place, LORENZO CHAMBERS (Principal at P.S. 279) and Ms. Stein (Assistant Principal) caused 10 year old infant MALIK ALI to be removed from his scheduled school activity, contacted the NYC Police Department and/or the NYCPD 69th Precinct and caused, directed, permitted and allowed the 10 year old infant, MALIK ALI to be arrested, falsely imprisoned, placed into a NYCPD vehicle and brought directly to the NYCPD 69th Pct. Upon information and belief, Lorenzo Chambers and Ms. Stein caused the false arrest and imprisonment of the 10 year old infant MALIK ALI, alleging that washable paint was found on a schoolyard slide and schoolyard ground and making false accusations regarding the involvement of the 10 year old infant MALIK ALI. Upon information and belief, Lorenzo Chambers further caused the arrest and imprisonment of 10 year old Kamani Garnett (See Notice of Claim annexed hereto) and Tyeisha Wright.

Upon information and belief, Lorenzo Chambers and Ms. Stein caused 2 uniformed police officers from the 69th Pct. to arrest 10 year old MALIK ALI, place him in a police car and take him to the 69th Pct. At the 69th Pct. 10 year old MALIK ALI was falsely arrested and imprisoned and treated like a hardened criminal; he was forced to empty his pockets; he was patted down; he was placed into a room and handcuffed to a wall for approximately 5 hours; he was denied food and drink; he was denied access to legal counsel during the entire time of his incarceration and imprisonment; he was denied access and permission to see and speak with his father and guardian Kamal Ali during the entire time of the 5 hour incarceration and imprisonment even though he was present in the precinct and demanding to see his 10 year old child. The aforesaid officers of the 69th Pct. used excessive and unnecessary force, falsely and unnecessarily imprisoned and handcuffed this 10 year old child for approximately 5 hours, during which time they verbally threatened and intimidated this child, deprived him of his constitutional and civil rights, denied, refused and deprived access to his father Kamal Ali and to legal counsel.

THE CITY OF NEW YORK, THE NYC BOARD OF EDUCATION, its employees LORENZO CHAMBERS, MS. STEIN, THE NYC POLICE DEPARTMENT, THE NYCPD 69th PCT. and the aforesaid certain police officers of the 69th Pct. whose identities are presently unknown, falsely and unnecessarily confined, imprisoned, verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed the 10 year old infant, MALIK ALI; they used excessive and unnecessary force, handcuffing this child to a wall in the 69th Pct for approximately 5 hours.

At all times following and during the aforesaid, confinement, false arrest and imprisonment, handcuffing and deprivation of the civil rights of the 10 year old child, MALIK ALI, LORENZO CHAMBERS, MS. STEIN and the other aforesaid unidentified NYC police officers and NYCPD, 69th Pct. and their agents and employees possessed information and knowledge that the claims and accusations against the 10 year old child MALIK ALI were false and without merit and he had not committed a criminal act. The aforesaid false arrest and imprisonment of the 10 year old MALIK ALI was made without a warrant and without probable cause to believe a crime was committed.

The NYCPD, 69th Pct., and certain unidentified police officers failed and refused to permit the 10 year old MALIK ALI to have access, contact or communication with his parents during the entire time the child was imprisoned, confined and handcuffed; the 10 year old child MALIK ALI was denied and deprived of due process, of his civil rights both State and Federal, (including but not limited to 42USC § 1983, 1981 and the Fourth Amendment of the United States Constitution), was refused access to his father and guardian, Kamal Ali, refused access to an attorney and was

verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed by NYCPD officers, the 69th Pct. and the NYCPD.

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and the NYCPD 69TH Pct., their agents, servants and/or employees and the aforesaid unidentified police officers of the 69th Pct. were careless, reckless and negligent in failing to properly train, instruct, supervise, monitor and control its agents, servants and employees; were careless, reckless and negligent in the performance of their law enforcement functions and duties; in that they failed to properly and adequately investigate the situation, question witnesses and respect and pay attention to the 10 year old infant claimant; in falsely detaining, arresting and imprisoning the said 10 year old infant claimant in a careless, reckless and negligent manner; in negligently, carelessly and recklessly failing to prevent the aforesaid incident; in causing, permitting and allowing the false arrest and imprisonment, excessive force, abuse and handcuffing of the 10year old child, MALIK ALI, for 5 hours, deprivation of his civil rights and denial of access to his father and guardian; in that they failed to employ adequate, competent personnel, training, supervision and inspection; in that they maintained and controlled their police officers and investigators, in a reckless disregard for the safety and welfare of said 10 year old infant claimant MALIK ALI; in that they failed to employ sufficient and adequate personnel and employees. That the CITY of NEW YORK, the NYCPD and the NYCPD 69th PCT., their agents, servants and employees on and before March 22, 2012 employed, engaged in, accepted, permitted and allowed a policy and/or custom and decision promulgated by the NYCPD, THE NYCPD 69TH pct., and the Police officers of the 69th Pct., of excessive and abusive force, lack of discretion and improper, careless, reckless and negligent investigation practices and procedures, racial and socio-economic bias and physical force and a disregard regarding the health, welfare and safety of children, specifically the 10 year old infant MALIK ALI herein. The aforesaid actions and conduct by THE NEW YORK CITY POLICE DEPARTMENT 69TH Pct. and the unidentified police officers of NYCPD 69TH Pct., their false arrest and imprisonment of 10 year old MALIK ALI, the isolating, imprisoning, handcuffing, denial and deprivation of his civil rights, their denial and refusing access to this 10 year old child by his father for 5 hours while keeping him handcuffed to a wall, occurred pursuant to the practice of the NYCPD AND THE 69TH Pct. of abuse, physical force and deprivation of Civil Rights that was so permanent and well settled as to constitute a custom and usage with the force of law. The CITY OF NEW YORK, NYCPD and NYCPD 69th PCT., failed to adequately and properly train the aforesaid unidentified police officers of the 69th Pct., with a deliberate indifference to the Civil Rights of the infant 10 year old MALIK ALI and his parents, in violation of 42USC § 1983. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, the 69th PCT., their agents, servants and/or employees deprived the said claimants, the 10 year old child, MALIK ALI and

his parents, Roseann Grant and Kamal Ali, of due process and violated their Civil Rights under the constitution of the State of New York and the United States of America, as well as all applicable Civil Rights statutes, laws, ordinances, rules and regulations of the City and State of New York and the United States of America/Federal Government. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, 69TH PCT., their agents, servants and/or employees maliciously assaulted and handcuffed the 10 year old claimant, verbally abused and humiliated and embarrassed the 10 year old claimant, MALIK ALI and defamed his character. THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, the 69TH PCT., their agents, servants and/or employees wrongfully, unlawfully, falsely and maliciously held, confined, restrained and imprisoned the said 10 year old claimant, MALIK ALI, handcuffed him for extended hours of time, falsely arrested him and deprived him of his liberty, violated his civil rights, isolated him and deprived him access to his father and guardian, denied him access to legal counsel and verbally physically and emotionally abused, defamed, humiliated, intimidated and embarrassed this 10 year old child; all of which caused and inflicted serious injury and damage to the 10 year old claimant MALIK ALI, herein set forth.

Upon information and belief, the CITY OF NEW YORK, Law Department, Office of the Corporation Counsel refused to file a petition and refused to file any charges against the infant claimant, 10 year old MALIK ALI. Annexed is a copy of NYC Dept. of Probation letter dated March 26, 2012.

THE CITY OF NEW YORK, THE BOARD OF EDUCATION, P.S. 279, LORENZO CHAMBERS and MS. STEIN, their agents, servants and/or employees, departments, agencies and those acting under their directions behest and control, were careless, reckless and negligent in their failure to properly investigate and/or evaluate the results of any investigation; in being careless, reckless and negligent in hiring, supervising, managing and controlling the principal of P.S. 279, LORENZO CHAMBERS the Assistant Principal, Ms. Stein and those persons, agents, servants and/or employees hired to operate, manage, control, supervise, teach at and/or run said School; in failing to hire efficient and/or sufficient personnel in connection with the operation, management, control, teaching at and/or supervision of said School; in failing to train their employees so as to enable them to control students and/or persons in classrooms; in failing to adequately train their employees so as to enable them to control students and/or persons in classrooms; in failing to properly and/or adequately supervise the teaching curriculum and/or activities provided by and/or at said School; in failing to promulgate proper and/or adequate rules and regulations governing the proper teaching curriculum and/or supervision to be provided and rendered by those agents, servants and/or employees hired to operate, manage, control, supervise, teach at and/or run said School; in failing to promulgate proper and/or adequate rules and/or regulations governing the proper care, guidance and/or supervision to be provided and rendered to

those utilizing said Public School; in failing to properly and/or adequately monitor the care, guidance and/or supervision provided at said School; in failing to properly and/or adequately provide guidance for and/or supervise the infant claimant herein; in failing to properly and/or adequately monitor and/or supervise the activities in which the infant claimant was involved in on the day of the incident; in failing to control students, in failing to prevent and/or stop inappropriate activity; in failing to adequately and properly supervise schoolyard activities; in failing to adequately and properly monitor, supervise and control the conduct and actions of Lorenzo Chambers and Ms. Stein; in failing to promulgate, enforce and provide proper and adequate rules and regulations regarding childish behavior and misbehavior of Public School children and students, which are fair, constitutional and in accordance with their Civil Rights and which prevent any injury and damage to the health and welfare of the children under their care and prevent unnecessary physical, emotional and psychological abuse, injury and damage; the 10 year old child MALIK ALI was not properly protected from the aforesaid conduct, actions, intimidation and abuse by LORENZO CHAMBERS and MS. STEIN.

Upon information and belief, the aforementioned paint in the school yard of P.S. 279 was very limited and was washed away with water. There was no damage to the premises. The 10 year old MALIK ALI, is the victim who was falsely arrested, imprisoned and handcuffed in a police precinct for 5 hours, and physically, emotionally abused, intimidated, humiliated and deprived of his Civil and Constitutional rights and subject to unconscionable, unnecessary and excessive physical, emotional and psychological abuse by Lorenzo Chambers, Ms Stein, police officers of the NYCPD 69TH Pct., The City of New York and the New York City Police Department.

4. The infant Claimant MALIK ALI sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment. The 10 year old infant claimant, MALIK ALI, has suffered damages in the sum of FIFTY MILLION DOLLARS (\$50,000,000.00).

Infant Claimant MALIK ALI further claims punitive damages in the amount of FIFTY MILLION (\$50,000,000.00) DOLLARS as a result of the aforesaid, concerted, conspired, wanton, willful and

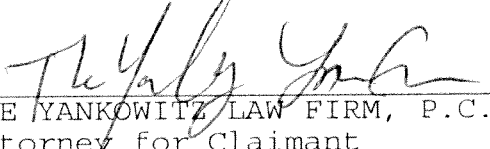
intentional assault/battery, false arrest, false imprisonment, physical, verbal, emotional and psychological abuse inflicted upon the 10 year old infant claimant and the aforesaid deprivation of the Civil and Constitutional Rights of the infant claimant, MALIK ALI, a 10 year old child.

The claimants, ROSEANN GRANT AND KAMAL ALI sustained and continues to suffer pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress unconscionable depravation and denial of their Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimants ROSEANN GRANT AND KAMAL ALI were caused to incur and continues to incur expenses for medical attention and treatment on behalf of their son, the infant claimant, MALIK ALI and she has suffered damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

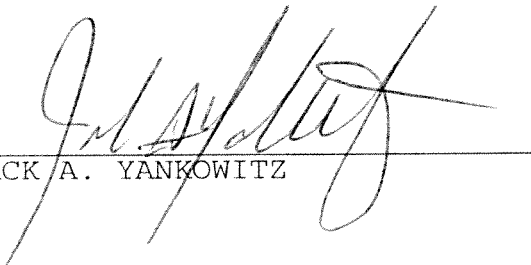
Claimants ROSEANN GRANT AND KAMAL ALI further claim punitive damages in the amount of TEN MILLION (\$10,000,000.00) DOLLARS as a result of the aforesaid, concerted, conspired, wanton, willful and intentional assault/battery, false arrest, confinement, false imprisonment, physical, verbal, emotional and psychological abuse inflicted upon their son, infant claimant MALIK ALI and the aforesaid deprivation of her Civil and Constitutional Rights and those of their son infant claimant, MALIK ALI, a 10 year old child.

The undersigned and claimants herein therefore present these claims for adjustment and payments. You are hereby notified that unless said claims are adjusted and paid within the time provided by law from the date of presentation to you, the claimants intend to commence an action on these claims.

Dated: Great Neck, New York
February 26, 2013



THE YANKOWITZ LAW FIRM, P.C.
Attorney for Claimant
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200



JACK A. YANKOWITZ

VERIFICATION

STATE OF NEW YORK
COUNTY OF NASSAU } ss.:

JACK A. YANKOWITZ, being duly sworn, deposes and says that deponent is the attorney for the above-named claimant; deponent has read the foregoing NOTICE OF CLAIM and know its contents; the same is true to deponent's knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters deponent believes it to be true.

Sworn to before me on
February 26, 2013

NOTARY PUBLIC

ANDREW S. KOENIG
Notary Public, State of New York
No. 0160-3013905
Qualified in Nassau County
Certificate Filed in Suffolk County
Commission expires June 25, 2014

JACK A. YANKOWITZ

THE CITY OF NEW YORK
DEPARTMENT OF PROBATION
330 JAY STREET, 11TH FLOOR
BROOKLYN, NEW YORK 11201
Tel. (718) 802-2605 Fax # (718) 802-2620

Martin F. Horn
Commissioner



Date: 3/26/12

Probationers's name: MALIK ALI
Address: 1130, EAST 98TH ST.
City: BROOKLYN N.Y. 11236

Dear:

Re: Case # KJ201201221

The Administrative Code of the City of New York, Title X, and New York State Penal Law Section 265, prohibits probationers from possessing and carrying weapons and/or other dangerous item.

Possession of the following weapons and/are potentially dangerous items is strictly prohibited.

- Air Pistol/Rifle
- Imitation/Toy Pistol
- Fireworks
- Tear Gas
- Knives with a blade of 4 inches or more
- Noxious Materials

All probationers entering any of the NYC Department of Probation's facilities will be searched. Probationers are also prohibited from entering Probation's facilities with the following items.

- Knives
- Markers
- Baseball Bats
- Box Cutters
- Matches/Lighters
- Spray Paint
- Tools for work/Trades
- Spray Paint
- Canes

Confiscated items will not be returned. Appropriate disciplinary action, including arrest, and the issuance of a Violation of Probation may be taken against any probationer found to be in violation of this prohibition.

In addition the following code of conduct should be observed: no do-rags or hats when reporting to probation officers, no foul language (cursing), no cell phone use in the waiting area, cell phones should be on silent, no music without head phones, no gang signs, beads or other gang paraphernalia. Also, probationers are also not allowed to bring friends when they report.

Probationer Malik Ali 3/26/12 P.O. A. BROWNE

NOTICE OF CLAIM

-----X
In the Matter of the Claim of

KAMANI GARNETT, Infant, by
COLINA GARNETT parent and natural guardian,
and COLINA GARNETT Individually

- against -

THE CITY OF NEW YORK
NEW YORK CITY BOARD OF EDUCATION,
PS 279, LORENZO CHAMBERS,
NEW YORK CITY POLICE DEPARTMENT,
NYCPD 69TH PRECINCT AND
POLICE OFFICERS OF THE 69TH PRECINCT WHOSE NAMES AND IDENTITIES
ARE PRESENTLY UNKNOWN

-----X

TO: The Comptroller of the City of New York
Municipal Building
New York, New York 10007

NEW YORK CITY BOARD OF EDUCATION, P.S.279 AND
LORENZO CHAMBERS
65 Court Street, Room 309, Brooklyn, New York 11201

P.S. 279
1070 East 104th Street, Brooklyn, NY 11236

NEW YORK CITY POLICE DEPARTMENT
NYCPD 69TH PCT AND CERTAIN UNIDENTIFIED OFFICERS
1 Police Plaza
New York, New York

NYCPD 69TH PRECINCT AND VARIOUS UNIDENTIFIED OFFICERS
9720 Forest Avenue, Brooklyn, New York

PLEASE TAKE NOTICE that the undersigned claimant hereby makes
claim and demands against you as follows:

1. Name and post office address of each claimant and claimants'
attorneys is:

Claimant

KAMANI GARNETT, infant
COLINA GARNETT
1097 East 95th Street
Brooklyn, NY 11236

Attorney

THE YANKOWITZ LAW FIRM, PC
175 East Shore Road
Great Neck, NY 11023
(516) 622-6200

2. The nature of the claim: To recover money damages for personal injuries, pain and suffering, emotional and psychological damages, humiliation, intimidation, embarrassment, defamation of character, medical expenses and related damages, deprivation of Civil Rights, false arrest and false imprisonment, assault and battery, malicious prosecution and all damages permitted by Statute and Case law, incurred by and on behalf of the 10 year old infant claimant KAMANI GARNETT, , and punitive damages, by reason of his false arrest/false imprisonment, deprivation of Civil Rights, assault and battery, malicious prosecution, physical, verbal and emotional abuse, excessive force and abuse, complicity in causing excessive and unnecessary infliction of physical, verbal and emotional abuse, and the negligence, carelessness and recklessness committed by THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, certain police officers of the NYCPD 69th Pct. whose names and identities are presently unknown, and their agents, servants and/or employees and by the NEW YORK CITY BOARD OF EDUCATION, P.S. 279 and LORENZO CHAMBERS.

3. The time when, the place where and the manner in which the Claim arose: Upon information and belief, the claim arose on March 22, 2012 at approximately 11:30 AM to 12:00 noon, while the 10 year old infant, KAMANI GARNETT, a fourth grade student was in attendance at Public School 279 located at 1070 East 104th Street, Brooklyn, New York.

At said time, date and place, LORENZO CHAMBERS (Principal at P.S. 279) caused 10 year old infant KAMANI GARNETT to be removed from his scheduled school activity, brought to his office where he, without notifying the child's parent and guardian Colina Garnett, without permission from the child's mother and guardian, Colina Garnett, commenced an interrogation. The principal, Lorenzo Chambers confined the 10 year old KAMANI GARNETT, intimidated and verbally abused and threatened the 10 year old KAMANI GARNETT with police arrest and imprisonment if he did not admit he was part of an incident which occurred on March 21, 2012 where some paint was found on a schoolyard slide and schoolyard ground. Lorenzo Chambers continued to confine the child and then telephoned his mother Colina Garnett falsely stating she had "video" that showed her son participating in putting paint on the schoolyard with other children and demanded that she come to the school immediately to discuss the matter; Mr. Chambers further stated to Ms. Garnett that he intends to have the children clean up the paint or they will be suspended. Thereafter, as Ms. Garnett was leaving her home to get to P.S. 279, she received a telephone call from P.S. 279 wherein a female employee advised Colina Garnett to go to the 69th Pct. to pick up her 10 year old child KAMANI GARNETT. Ms. Garnett demanded to speak to the principal, Lorenzo Chambers who then stated to her that he decided to "Scare her 10 year old child Kamani", and "make an example of him", to scare and intimidate the other children in his school.

Upon information and belief, shortly thereafter, Lorenzo Chambers caused 2 uniformed police officers from the 69th Pct. to

arrize at P.B. 279, and they arrested 10 year old KAMANI GARNETT and two other children (Tyasha Wright, female and Malik Ali, male); placed them in a police car and took them to the 69th Pct. At the 69th Pct. 10 year old KAMANI GARNETT was falsely arrested and imprisoned and treated like a hardened criminal; he was forced to empty his pockets; he was patted down; he was placed into a room and handcuffed to a wall for approximately 4 hours; he was denied food and drink; he was denied access to legal counsel during the entire time of his incarceration and imprisonment; he was denied access and permission to see and speak with his mother and guardian Colina Garnett during the entire time of the 4 hour incarceration and imprisonment even though she was present in the precinct and demanding to see her 10 year old child. The aforesaid officers of the 69th Pct. used excessive and unnecessary force, falsely and unnecessarily imprisoned and handcuffed this 10 year old child for approximately 4 hours, during which time they verbally threatened and intimidated this child, deprived him of his constitutional and civil rights, denied, refused and deprived access to his mother Colina Garnett.

THE CITY OF NEW YORK, THE NYC BOARD OF EDUCATION, its employee LORENZO CHAMBERS, THE NYC POLICE DEPARTMENT, THE NYCPD 69th PCT. and the aforesaid certain police officers of the 69th Pct. whose identities are presently unknown, falsely and unnecessarily confined, imprisoned, verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed the 10 year old infant, KAMANI GARNETT; they used excessive and unnecessary force, handcuffing this child to a wall in the 69th Pct for approximately 4 hours.

At all times following and during the aforesaid, confinement, false arrest and imprisonment, handcuffing and deprivation of the civil rights of the of the 10 year old child, KAMANI GARNETT, LORENZO CHAMBERS and the other aforesaid unidentified NYC police officers and NYCPD, 69th Pct. and their agents and employees possessed information and knowledge that the claims and accusations against the 10 year old child KAMANI GARNETT were false and without merit and he had not committed a criminal act. The aforesaid false arrest and imprisonment of the 10 year old KAMANI GARNETT was made without a warrant and without probable cause to believe a crime was committed.

The NYCPD, 69th Pct., and certain unidentified police officers failed and refused to permit the 10 year old KAMANI GARNETT to have access, contact or communication with his mother COLINA GARNETT during the entire time the child was imprisoned, confined and handcuffed; the 10 year old child KAMANI GARNETT was denied and deprived of his civil rights both State and Federal, (including but not limited to 42USC § 1983, 1981 and the Fourth Amendment of the United States Constitution), was refused access to his mother and guardian, COLINA GARNETT, refused access to an attorney and was verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed by NYCPD officers, the 69th Pct. and the NYCPD.

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and the NYCPD 69th Pct., their agents, servants and/or employees and the aforesaid unidentified police officers of the 69th Pct. were careless, reckless and negligent in failing to properly train, instruct, supervise, monitor and control its agents, servants and employees; were careless, reckless and negligent in the performance of their law enforcement functions and duties; in that they failed to properly and adequately investigate the situation, question witnesses and respect and pay attention to the 10 year old infant claimant; in falsely detaining, arresting and imprisoning the said 10 year old infant claimant in a careless, reckless and negligent manner; in negligently, carelessly and recklessly failing to prevent the aforesaid incident; in causing, permitting and allowing the false arrest and imprisonment, excessive force, abuse and handcuffing of the 10 year old child, KAMANI GARNETT, for 4 hours, deprivation of his civil rights and denial of access to his mother and guardian; in that they failed to employ adequate, competent personnel, training, supervision and inspection; in that they maintained and controlled their police officers and investigators, in a reckless disregard for the safety and welfare of said 10 year old infant claimant KAMANI GARNETT; in that they failed to employ sufficient and adequate personnel and employees. That the CITY OF NEW YORK, the NYCPD and the NYCPD 69th PCT., their agents, servants and employees on and before March 22, 2012 employed, engaged in, accepted, permitted and allowed a policy and/or custom and decision promulgated by the NYCPD, THE NYCPD 69th pct., and the Police officers of the 69th Pct., of excessive and abusive force, lack of discretion and improper, careless, reckless and negligent investigation practices and procedures, racial and socio-economic bias and physical force and a disregard regarding the health, welfare and safety of children, specifically the 10 year old infant KAMANI GARNETT herein. The aforesaid actions and conduct by THE NEW YORK CITY POLICE DEPARTMENT 69th Pct. and the unidentified police officers of NYCPD 69th Pct., their false arrest and imprisonment of 10 year old KAMANI GARNETT, the isolating, imprisoning, handcuffing, denial and deprivation of his civil rights, their denial and refusing access to this 10 year old child by his mother for 4 hours while keeping him handcuffed to a wall, occurred pursuant to the practice of the NYCPD AND THE 69th Pct. of abuse, physical force and deprivation of Civil Rights that was so permanent and well settled as to constitute a custom and usage with the force of law. The CITY OF NEW YORK, NYCPD and NYCPD 69th PCT., failed to adequately and properly train the aforesaid unidentified police officers of the 69th Pct., with a deliberate indifference to the Civil Rights of the infant 10 year old KAMANI GARNETT and his mother, in violation of 42USC § 1983. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, the 69th PCT., their agents, servants and/or employees deprived the said claimants, the 10 year old child, KAMANI GARNETT and his mother, COLINA GARNETT of due process and violated their Civil Rights under the constitution of the State of New York and the United States of America, as well as all applicable Civil Rights statutes, laws, ordinances, rules and

regulations of the City and State of New York and the United States of America/Federal Government. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, 69TH PCT., their agents, servants and/or employees maliciously assaulted and handcuffed the 10 year old claimant, verbally abused and humiliated and embarrassed the 10 year old claimant, KAMANI GARNETT and defamed his character. THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, the 69TH PCT., their agents, servants and/or employees wrongfully, unlawfully, falsely and maliciously held, confined, restrained and imprisoned the said 10 year old claimant, KAMANI GARNETT, handcuffed him for extended hours of time, falsely arrested him and deprived him of his liberty, violated his civil rights, isolated him and deprived him access to his mother and guardian, denied him access to legal counsel and verbally physically and emotionally abused, defamed, humiliated, intimidated and embarrassed this 10 year old child; all of which caused and inflicted serious injury and damage to the 10 year old claimant KAMANI GARNETT, herein set forth.

Upon information and belief, the CITY OF NEW YORK, Law Department, Office of the Corporation Counsel refused to file a petition and refused to file any charges against the infant claimant, 10 year old KAMANI GARNETT.

THE CITY OF NEW YORK, THE BOARD OF EDUCATION, P.S. 279, LORENZO CHAMBERS, their agents, servants and/or employees, departments, agencies and those acting under their directions behest and control, were careless, reckless and negligent in their failure to properly investigate and/or evaluate the results of any investigation; in being careless, reckless and negligent in hiring, supervising, managing and controlling the principal of P.S. 279, LORENZO CHAMBERS and of those persons, agents, servants and/or employees hired to operate, manage, control, supervise, teach at and/or run said School; in failing to hire efficient and/or sufficient personnel in connection with the operation, management, control, teaching at and/or supervision of said School; in failing to train their employees so as to enable them to control students and/or persons in classrooms; in failing to adequately train their employees so as to enable them to control students and/or persons in classrooms; in failing to properly and/or adequately supervise the teaching curriculum and/or activities provided by and/or at said School; in failing to promulgate proper and/or adequate rules and regulations governing the proper teaching curriculum and/or supervision to be provided and rendered by those agents, servants and/or employees hired to operate, manage, control, supervise, teach at and/or run said School; in failing to promulgate proper and/or adequate rules and/or regulations governing the proper care, guidance and/or supervision to be provided and rendered to those utilizing said Public School; in failing to properly and/or adequately monitor the care, guidance and/or supervision provided at said School; in failing to properly and/or adequately provide guidance for and/or supervise the infant claimant herein; in failing to properly and/or adequately monitor and/or supervise the activities in which

the infant claimant was involved in on the day of the incident; in failing to control students; in failing to prevent and/or stop inappropriate activity; in failing to adequately and properly supervise schoolyard activities; in failing to adequately and properly monitor, supervise and control the conduct and actions of Lorenzo Chambers; in failing to promulgate, enforce and provide proper and adequate rules and regulations regarding childish behavior and misbehavior of Public School children and students, which are fair, constitutional and in accordance with their Civil Rights and which prevent any injury and damage to the health and welfare of the children under their care and prevent unnecessary physical, emotional and psychological abuse, injury and damage; the 10 year old child KAMANI GARNETT was not properly protected from the aforesaid conduct, actions, intimidation and abuse by LORENZO CHAMBERS.

Upon information and belief, the aforementioned paint in the school yard of P.S. 279 was very limited and was washed away with water. There was no damage to the premises. The 10 year old KAMANI GARNETT, is the victim who was falsely arrested, imprisoned and handcuffed in a police precinct for 4 hours, and physically, emotionally abused, intimidated, humiliated and deprived of his Civil and Constitutional rights and subject to unconscionable, unnecessary and excessive physical, emotional and psychological abuse by Lorenzo Chambers, police officers of the NYCPD 69th Pct., The City of New York and the New York City Police Department.

4. The infant Claimant KAMANI GARNETT sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment. The 10 year old infant claimant, KAMANI GARNETT, has suffered damages in the sum of FIFTY MILLION DOLLARS (\$50,000,000.00).

Infant Claimant KAMANI GARNETT further claims punitive damages in the amount of FIFTY MILLION (\$50,000,000.00) DOLLARS as a result of the aforesaid, concerted, conspired, wanton, willful and intentional assault/battery, false arrest, false imprisonment, physical, verbal, emotional and psychological abuse inflicted upon the 10 year old infant claimant and the aforesaid deprivation of the Civil and Constitutional Rights of the infant claimant, KAMANI GARNETT, a 10 year old child.

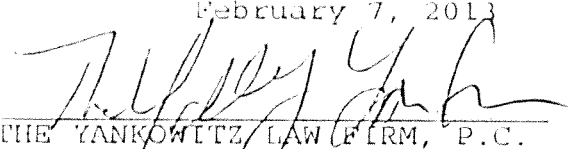
The claimant, COLINA GARNETT sustained and continues to suffer pain and distress, emotional and psychological injury and

damage, great indignity, embarrassment and humiliation, pain and distress, unconscionable deprivation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights Statutes, Laws, Ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant COLINA GARNETT was caused to incur and continues to incur expenses for medical attention and treatment on behalf of her son, the infant claimant, KAMANI GARNETT and she has suffered damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

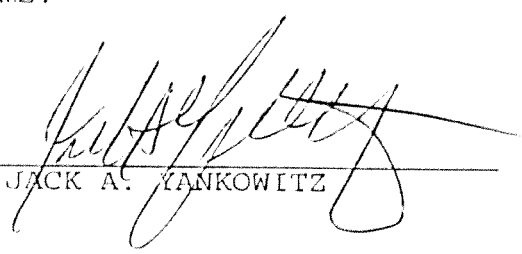
Claimant COLINA GARNETT further claims punitive damages in the amount of TEN MILLION (\$10,000,000.00) DOLLARS as a result of the aforesaid, concerted, conspired, wanton, willful and intentional assault/battery, false arrest, confinement, false imprisonment, physical, verbal, emotional and psychological abuse inflicted upon her son, infant claimant KAMANI GARNETT and the aforesaid deprivation of her Civil and Constitutional Rights and those of her son infant claimant, KAMANI GARNETT, a 10 year old child.

The undersigned and claimants herein therefore present these claims for adjustment and payments. You are hereby notified that unless said claims are adjusted and paid within the time provided by law from the date of presentation to you, the claimants intend to commence an action on these claims.

Dated: Great Neck, New York
February 7, 2013



THE YANKOWITZ LAW FIRM, P.C.
Attorney for Claimant
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200



JACK A. YANKOWITZ

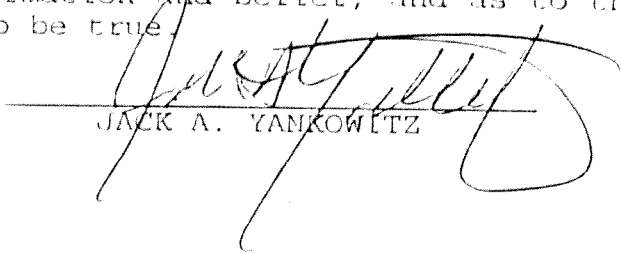
VERIFICATION

STATE OF NEW YORK

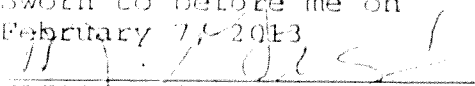
SS.:

COUNTY OF NASSAU }

JACK A. YANKOWITZ, being duly sworn, deposes and says that deponent is the attorney for the above-named claimant; deponent has read the foregoing NOTICE OF CLAIM and know its contents; the same is true to deponent's knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters deponent believes it to be true.


JACK A. YANKOWITZ

Sworn to before me on
February 7, 2013


NOTARY PUBLIC

NOTARY PUBLIC
QUALIFIED
TERM EXPIRES SEPTEMBER 20, 2014

In the Matter of the Claim of
KAMANI GARNETT, infant, by COLINA GARNETT
parent and natural guardian, and
COLINA GARNETT, individually,

-against-

THE CITY OF NEW YORK
NEW YORK CITY BOARD OF EDUCATION
P.S. 279, LORENZO CHAMBERS,
NEW YORK CITY POLICE DEPARTMENT
NYCPD 69TH PRECINCT AND
POLICE OFFICERS OF THE 69TH PRECINCT WHOSE NAMES
AND IDENTITIES ARE PRESENTLY UNKNOWN

NOTICE OF CLAIM

THE YANKOWITZ LAW FIRM, P.C.
Attorneys for Claimants
175 East Shore Road
Great Neck, NY 11023
(516)622-6200

TO:

In the Matter of the Claim of
MALIK ALI, infant, by ROSEANN GRANT and KAMAL ALI,
parents and natural guardians, and
ROSEANN GRANT and KAMAL ALI, individually,

-against-

THE CITY OF NEW YORK
NEW YORK CITY BOARD OF EDUCATION
P.S. 279, LORENZO CHAMBERS, MS. STEIN,
NEW YORK CITY POLICE DEPARTMENT
NYCPD 69TH PRECINCT AND
POLICE OFFICERS OF THE 69TH PRECINCT WHOSE NAMES
AND IDENTITIES ARE PRESENTLY UNKNOWN

NOTICE OF CLAIM

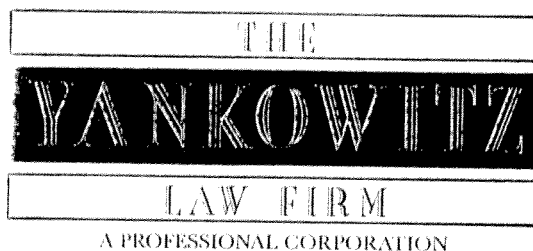
THE YANKOWITZ LAW FIRM, P.C.

Attorneys for Claimants
**175 East Shore Road
Great Neck, NY 11023
(516)622-6200**

TO:

NEW YORK CITY
17 Battery Place
New York, New York 10004
(212) 868-8888 (718) 829-4300

ALBANY
23 British American Boulevard
Latham, New York 12110
(800) LAW-3333



NEW JERSEY
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Newark, NJ 07102
385 Lakeview Avenue
Clifton, NJ 07011
PENNSYLVANIA
4961 Oxford Avenue
Philadelphia, PA 19124

175 EAST SHORE ROAD
GREAT NECK, NEW YORK 11023
Tel: (516) 622-6200
Fax: (516) 829-4344
www.yankowitz.com

March 6, 2013

REPLY TO GREAT NECK OFFICE

BY CERTIFIED MAIL RRR

The Comptroller of the City of New York
Municipal Building
One Centre Street
New York, NY 10007

Re: Malik Ali, infant and Kamani Garnett, infant
D/Accident: March 22, 2012
Our File No.: 7526-12

Dear Sir/Madam:

This letter will serve as a FOIL request, pursuant to the Freedom of Information Act, for the following records relating to the above referenced matters:

The appearance ticket and any other documents, writings, memos, logs, notes, etc. setting forth and indicating the name(s) and badge numbers of the New York City Police Officers, upon information and belief, from the 69th precinct who arrested and/or were involved in the arrest and handcuffing of the infants, Kamani Garnett and Malik Ali on March 22, 2012 (as identified in the Notices of Claim annexed hereto for reference).

I look forward to your prompt response.

Very truly yours,

JACK A. YANKOWITZ

JAY:AC
Enclosure



POLICE DEPARTMENT
LEGAL BUREAU

F.O.I.L. Unit, Room 110C
One Police Plaza
New York, NY 10038

The Yankowitz Law Firm
Jack Yankowitz
175 East Shore Road
Great Neck NY 11023

3/18/2013

File # 2013-PL-1716
Your File # 7526-12

Dear Sir or Madam:

This is in response to your letter dated 3/6/2013 in which you requested access to certain records under the New York State Freedom of Information Law (FOIL).

In regard to the document(s) which you requested, I must deny access to these records on the basis of Public Officers Law section 87(2)(e)(i) as such records /information, if disclosed would interfere with law enforcement investigations or judicial proceedings.

Should you so desire, you may appeal this decision or any portion of thereof. Such an appeal must be made in writing, within thirty (30) days of this letter, and must be forwarded to:

Jonathan David
Records Access Appeals Officer
New York City Police Department
One Police Plaza-Room 1406
New York, NY 10038-1497

Sincerely,

Richard Mantellino
Lieutenant
Records Access Officer

From: Bodner, Marilyn [mailto:mbodner@comptroller.nyc.gov]

Sent: Thursday, May 30, 2013 11:46 AM

To: Mariela

Subject: RE: Malik Ali, Kamani Garnett

We have adjourned the June 21, 2013 hearing for 2013PI007065/Kamani Garnett. We will not reschedule a hearing for either claimant until the motion is decided.

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

KAMANI GARNETT, infant, by his mother and natural guardian COLINA GARNETT and GOLINA CARNETT, individually and MALIK ALI, infant by his parents and natural guardians ROSEANNA GRANT and KAMAL ALI and ROSEANNA GRANT and KAMAL ALI, individually,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY BOARD and/or DEPARTMENT OF EDUCATION, LORENZO CHAMBERS, in his individual and official capacities, “JANE” STEIN (first name being Fictitious and presently unknown), in her individual and official capacities, NEW YORK CITY POLICE DEPARTMENT NYC POLICE OFFICERS “JOHN DOES” (names being fictitious and presently unknown), in their individual and official capacities,

Defendant(s)

SUMMONS AND VERIFIED COMPLAINT

THE YANKOWITZ LAW FIRM, P.C.

Attorneys for PLAINTIFFS

175 East Shore Road

Great Neck, New York 11023

(516) 622-6200

TO: